



File No.: PS/00547/2022

## RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

### BACKGROUND

FIRST: Mr. A.A.A. and Ms. B.B.B. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on November 18, 2021. The complaint is directed against Servicios de la Comarca de Pamplona, Sociedad Anónima with NIF A31118441 (hereinafter, SCPSA). The reasons for the complaint are as follows:

The complainant states that SCPSA has established a system for opening waste containers through an electronic card. They have distributed in the municipal area of Pamplona an envelope containing a brochure with two attached electronic cards, as well as a sheet with "user" data and a password for a mobile application. Each card contains an address, which is that of the property to which the envelope is delivered to the occupant (whoever they may be, without a request for identification).

In the information provided to the interested parties, it is indicated that the data on the opening of the containers by each of the cards will be processed to analyze the use of the containers.

The complainant states that the regulatory basis (Regulatory Ordinance on Waste Management in the Pamplona Comarca) allows for the collection of data on the use of the containers and of one in relation to the other (organic and residual), but not for the collection of data on the use of each container by each person, which is completely different, since this latter collection involves the immediate knowledge of multiple data points for each user: behavioral habits, days when the residence is empty, number of occupants of the residence, or personal differences regarding diet or the use of items that must go into the residual fraction container.

The complainant further indicates that the association of the card to the interested parties derives from the linkage between the card and the personal data of the holder or owner of the property, with the aforementioned data obtained from the Territorial Wealth Registry of Navarra.

The complainant concludes that the collection of data from the owners violates Article 5 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, regarding the protection of natural persons with regard to the processing of personal data and the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (hereinafter, GDPR), as it is not necessary to process the data of the owners, nor the data on the use of the containers by each owner, to achieve the objectives.

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finishes pursued by the data controller. In this sense, it means that to know the degree of use of each container, it is not necessary to know who owns the property.

It also highlights that SCPSA has not conducted a prior impact assessment before processing the data, has failed to comply with the duties of minimization, data accuracy, and information.

Along with the complaint, the claimant provides the mailer, two electronic cards for opening the containers that show the same address, and the informational brochure regarding how to use the service, as well as the following information regarding the protection of personal data:

"In relation to the data recorded by these cards and their subsequent processing, we are pleased to inform you that: 'Each of the cards delivered incorporates a device that allows recording the number of openings of the different containers, a data point that will be associated with the postal address indicated on the outside of the card. Since these are data, sometimes related to an identified or identifiable person, the information obtained regarding the opening of containers will be processed in accordance with personal data protection regulations. All data collected as a result of the use of these cards will be processed under the responsibility of Servicios de la Comarca de Pamplona, S.A.

(SCPSA), to analyze the use of the containers for organic waste and others, and specifically to know their degree of use in order to achieve the applicable regulatory objectives, as well as to carry out information activities, service promotion, and its results. Furthermore, we inform you that you may exercise your rights of access, rectification, deletion, and the other rights that assist you by contacting the Data Controller at the email address [protecciondatos@mcp.es](mailto:protecciondatos@mcp.es). You can consult additional information about privacy at [www.mcp.es/fichadatosresiduos](http://www.mcp.es/fichadatosresiduos).”

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the Mancomunidad de la Comarca de Pamplona (hereinafter MCP), with NIF P3112070B, for it to proceed with its analysis and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on January 10, 2022, as noted in the acknowledgment of receipt that is in the file.

THIRD: On January 24, 2022, a response letter was received in this Agency presented by MCP, in which it indicates that MCP and SCPSA are two entities with independent legal personality and that the responsible party for the data subject to the complaint is SCPSA, stating in its conclusions that:

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“- It is SCPSA that holds the legal relationship with the users of the urban waste management service.

- The Mancomunidad has not implemented the new waste collection system that requires the use of waste cards.

- The Mancomunidad has no information regarding the use of the waste cards to be able to use the organic and other containers.

- The Mancomunidad does not hold the status of responsible or processor of the data related to the waste cards.

- The staff of the Mancomunidad does not have access to the applications or data related to the waste cards.

(...)

However, the complaint has been forwarded to SCPSA, which is the data controller, so that it can provide the appropriate response to this Spanish Agency for Data Protection.”

To this letter, MCP attaches the Statutes of SCPSA, the Regulation of Relations between the Mancomunidad de la Comarca de Pamplona / Servicios de la Comarca de Pamplona, S.A., the Regulatory Ordinance for Waste Management in the Mancomunidad de la Comarca de Pamplona, the Regulatory Ordinance on Public Non-Tax Asset Benefits for the Provision of Urban Waste Management Services 2022, and additional privacy information related to the waste card file and other opening devices.

FOURTH: On February 8, 2022, a letter was received in this Agency presented by SCPSA, which sends:

1.- Report from the Data Protection Officer of SCPSA, which indicates, in summary, the following:

- That MCP is the public administration responsible for water supply and sanitation services, waste management, and urban transport, with the management of the services corresponding to SCPSA, a public company with exclusive capital from it, in accordance with the provisions of Article 1 of the Regulation of Relations between the Mancomunidad de la Comarca de Pamplona / Servicios de la Comarca de Pamplona.

- It states that the complaint does not refer to an exercise of rights. It also states that as has been informed to the interested parties, and is indicated on the websites of MCP and SCPSA, it explains how interested parties can exercise their rights regarding data protection.

- It states that the cards delivered contain the following information along with the postal address:

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"This card is the property of Servicios de la Comarca de Pamplona SA and its use is subject to the conditions determined by it.

Responsible: Servicios de la Comarca de Pamplona SA  
You can exercise your rights at [protecciondatos@mcp.es](mailto:protecciondatos@mcp.es)  
Additional information at [www.mcp.es/fichadatosresiduos](http://www.mcp.es/fichadatosresiduos)"

Indicating below what additional information is included in the aforementioned link.

- It refers to PS/00201/2019 from the Spanish Agency for Data Protection, initiated against MCP and concluded with a resolution on March 12, 2020, in which MCP was warned for a defect in the information provided, requiring the correction of said defect, but without taking any measures regarding the printing of the postal address, indicating that "SCPSA has assumed the consideration of the postal address as personal data and, consequently, its actions comply with the requirements of the AEPD, fulfilling the obligations set forth by the GDPR."

- It states that "These cards are not personal nor related to any identified or identifiable natural person; only the postal address is recorded, which is the data used as a unit of measurement for the openings. Therefore, the use of this card is intended for the opening of containers by individuals using the property, whether as owners, tenants, or simply as employees thereof."

Adding that "it cannot be known whether the set of cards related to a postal address is being used for the opening of containers by one or more persons."

- It indicates that there is a system for requesting new cards in which the identification of the requester is necessary, "but this information is not verified or cross-referenced with its use. The data is exclusively intended to resolve said request and subsequently check for possible situations of abuse or fraud. That is to say, on one hand, it aims to control the number of active cards per postal address (...)"

- It indicates that the system for opening containers can also be done through a mobile application that collects a series of necessary data for its own functioning, which are different and independent from those managed by SCPSA for waste management, noting that this circumstance is stated to the user in the privacy policy of the application.

- It states that through a data analysis tool, the following information can be obtained:

- Number of openings of each container and time of opening.

- Degree of service usage by postal address.

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- It considers that it does comply with the principles set forth in Article 5 of the GDPR, specifically it complies with the principle of minimization because, says SCPSA, "the processing is done in such a way that only the opening data of all the opening cards or devices associated with each postal address is exploited in an aggregated manner.

(...) the information from Territorial Wealth used for the management of the system is the postal reference, and the opening data is associated with it, but it is not related to the natural or legal person who owns the property listed in the Territorial Wealth database as it is not necessary for the purposes of processing.

This fact also implies respect for the principle set forth in letter d) regarding the accuracy of the data."

- It states that it has not conducted an impact assessment because, "after a legal examination of the necessity of such assessment, it was concluded that it was not necessary."

It adds that a consultancy was carried out with the company Auren, which conducted a new analysis of

the need to carry out a Personal Data Impact Assessment, concluding that it is not necessary.

- It does not share the assertion made by the complainant regarding the knowledge of each user's habits with this system, as SCPSA indicates, "there is no type of positioning control of the cards, the user of the same is not known, and no more information is collected than that aggregated to all the cards issued along with the mobile devices used with the specific user and password related to the number of openings.

To the aforementioned report, the data protection officer attaches documentation related to PS/00201/2019 from the AEPD, the final design of the card, the additional information listed at [www.mcp.es/fichadatosresiduos](http://www.mcp.es/fichadatosresiduos) regarding the description of the waste card file and other opening devices, models of in-person card request forms, the privacy policy of the mobile application for opening containers, the report on the analysis of the need for a personal data impact assessment carried out by the company Auren, and the response from the AEPD to the Ombudsman regarding PS/00201/2019.

2.- Report from the Director-Manager of SCPSA justifying the system for opening containers and mailboxes via electronic device, to which the ex post evaluation report of the pilot project and the final report submitted to the Board of Directors of SCPSA regarding the pilot project are attached.

FIFTH: On February 18, 2022, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

SIXTH: The General Subdirector for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of the GDPR, and of

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in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

On March 4, 2022, access was granted to the following website where the Regulatory Ordinance for Waste Management in the Pamplona Region is located:

[https://sedeelectronica.mcp.es/sites/default/files/normativa/Ord%20Servicios%20RU/ordenanza\\_gestion\\_ru\\_castellano\\_2021-emord-001.pdf](https://sedeelectronica.mcp.es/sites/default/files/normativa/Ord%20Servicios%20RU/ordenanza_gestion_ru_castellano_2021-emord-001.pdf)

On March 11, 2022, an information request was sent to SCPSA regarding:

1. Identification and accreditation (contracts) of the data processors handling the data processed by the electronic container opening system, including the mobile application, in accordance with Article 28 of the GDPR.

2. Description of the technical and organizational security measures referred to in Article 32 of the GDPR, as well as the accreditation of their implementation.

3. Copy of the record of all personal data processing activities of clients carried out under its responsibility in its initial version, along with any additions, modifications, or exclusions in its content.

4. Detailed description of the personal data used, and the processing thereof in relation to the following means or sources of information:

a. System usage cards (differentiating between data related to an owner, tenant, or user of a concierge service).

b. Regional Urban Transport Cards (hereinafter TUC) with which this system can be integrated.

c. Mobile application (SIGMA MCP).

d. Territorial Wealth Register.

e. Any other means or source of information used by the system.

5. In relation to a user who is a property owner or business premises owner:

a. Documentation of the registration process in the electronic container opening system.

b. Documentation of the deregistration process in the electronic container opening system.

6. In relation to a user of a concierge, cleaning, or equivalent service, responsible for the internal removal of waste:

- a. Documentation of the registration process in the electronic container opening system.
- b. Documentation of the deregistration process in the electronic container opening system.
- 7. In relation to a TUC card user:
  - a. Documentation of the registration process from the moment the user submits the application until they are finally registered in the electronic container opening system.
  - b. Documentation of the deregistration process in the electronic container opening system.
- 8. In relation to a tenant user of a residence or business premises:
  - a. Documentation of the registration process from the moment the user submits the application until they are finally registered in the electronic container opening system.
  - b. Documentation of the deregistration process in the electronic container opening system, relating it to what was requested in point 4.
- 9. Conducting a test that demonstrates the step-by-step functioning of the SIGMA MCP mobile application during the complete registration of a new user.
- 10. Copy of the information regarding data protection provided through any channel to users. In case there are addenda or variations, or other privacy notices or additional information related to the processing of personal data, a copy of all documents used to inform about personal data protection was also requested.
- 11. Details of the channels and procedures established to inform users of all information regarding personal data protection (privacy policy or any other document).
- 12. Information regarding the channels, mechanisms, and methodologies used to obtain users' acceptance of the privacy policy or any other document used to inform about personal data protection, as well as for the provision of the consents provided for in such documents, if applicable.
- 13. Copy of the impact assessments on personal data protection related to any type of personal data processing operations of users carried out under its responsibility that entail a high risk to the rights and freedoms of natural persons, as established in Article 35 of the GDPR. The initial version of these impact assessments was requested, and, if applicable, details of any modifications or updates that may have been made. In the event that no impact assessment has been carried out, its

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justification. Likewise, in cases where a change in the risk represented by the processing operations has occurred and it has been deemed necessary, it was requested to provide the result of the examination that may have been carried out to determine whether the processing is in accordance with the impact assessment related to data protection (Article 35.11 of the GDPR).

On March 22, 2022, access was granted to the following website where the statutes of SCPSA can be found:

<https://sedeelectronica.mcp.es/sites/default/files/normativa/Ord%20General%20SCPSA/Estatutos%20SCPSA%20vigente.pdf>

On the date of registration entry of March 23, 2022, SCPSA requested an extension of the deadline to submit the information required on March 11, 2022, which was granted on the same date.

On April 4, 2022, SCPSA responded to the aforementioned request, stating the following in its conclusions:

- “1. First of all, it should be noted that all processing is carried out on the bases of legitimacy regulated in the GDPR and LOPDGDD.
- 2. All data collection directly from interested individuals for the management of cards or permits is carried out through express consent after informing about the aspects required by the applicable regulations.
- 3. The information is contained in computer systems that have adequate security measures that guarantee confidentiality, integrity, resilience, and, where applicable, recovery.
- 4. The different data used for the processing of opening data obtained from various devices are disaggregated in different databases, preventing the correlation of opening data with any identified or

identifiable natural person in the event of unauthorized access.

5. The exploitation of the information is carried out through an information manager that is fed beforehand with data that does not contain any identifying information of natural persons, which prevents the correlation of openings with natural persons in any analysis.

6. The interested parties have all the information required by the regulations regarding the processing that is carried out, including information regarding the exercise of rights.”

To this writing, SCPSA attaches the following documentation:

- Regulatory document of the contract “supply, installation, integration, commissioning, operation, and maintenance of an access control system for containers in the Pamplona region. SCAC. File 2020/SCON-ASU/000015”.

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- Technical offer submitted by ID&A.;
- Contract “supply, installation, integration, commissioning, operation, and maintenance of an access control system for containers in the Pamplona region. SCAC. File 2020/SCON-ASU/000015” signed between SCPSA and ID&A.;
- Regulatory document of the “framework agreement for the supply of contactless cards for use in the waste service of the Pamplona region. File \*\*\*EXPEDIENTE.1”.
- “Framework agreement for the supply of contactless cards for use in the waste service of the Pamplona region. File \*\*\*EXPEDIENTE.1”, lot 1, signed between SCPSA and Industrias Francisco Botella, S.L.
- “Framework agreement for the supply of contactless cards for use in the waste service of the Pamplona region. File \*\*\*EXPEDIENTE.1”, lot 2, signed between SCPSA and Gureak Marketing, S.L.U.
- Regulatory document of the contract “program of direct communication and proximity actions for the implementation of containers with electronic card opening in the Pamplona region (phase 2021/2022). File 2020/SCON-ASU/000024”.
- Contract lot 1 “program of direct communication and proximity actions for the implementation of containers with electronic card opening in the Pamplona region (phase 2021/2022). File 2020/SCON-ASU/000024” signed between SCPSA and Lavola 1981 S.A.U.
- Contract lot 2 “program of direct communication and proximity actions for the implementation of containers with electronic card opening in the Pamplona region (phase 2021/2022). File 2020/SCON-ASU/000024” signed between SCPSA and Lavola 1981 S.A.U.
- Backup procedure.
- Logical access management procedure.
- Security architecture/control of communications-networks and service security procedure.
- Security document v. 6.
- Obligations of personnel who access and/or process resources or information systems of the MCP and/or SCPSA.
- Record of processing activities of waste files and cards.
- Information available at [www.mcp.es](http://www.mcp.es) regarding the implementation of the containers.

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- Telematic application form for waste card.
- In-person application form for waste card.
- File of waste cards and other opening devices.

- Response letter to waste card application.
- File of records.
- Brochure on the use of containers.
- Brochure on the use of waste mailboxes.
- In-person application form for activation of the TUC card for waste.
- Response letter to the application for activation of the TUC card for waste.
- In-person application form related to the mobile application for opening containers.
- Response letter regarding the credentials of the mobile application for opening containers.
- Steps to install the mobile application for opening containers.
- Privacy policy of the mobile application for opening containers.
- Instructions for using the mobile application for opening containers.
- Letter signed by the president of MCP regarding the implementation of the system.
- Brochure accompanying the cards.
- Informative brochure on how to act in case of leaving a residence or establishment as well as when accessing a new residence or establishment.
- Registration of telematic application for card for co-owners.
- Step-by-step operation of the mobile application SIGMA MCP.
- ID&A; Document 25-007.2 on SIGMA APP.
- SCPSA RU+TUC card 2021.
- Report on the results of the personal data impact assessment for the processing "social rates."

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On April 21, 2022, the following documentation regarding the technical permissions of the mobile application SIGMA MCP was incorporated into the inspection proceedings:

"When performing an operation to open a container, access to the location is requested (as it is linked to the use of Bluetooth on devices with the Android operating system)."

Screenshots were attached in this regard.

On April 25, 2022, access was made to the following webpage where additional information about data protection of the waste card file can be found:

[https://mcp.es/sites/default/files/ficheros\\_lopd/Tarjeta-de-residuos.pdf](https://mcp.es/sites/default/files/ficheros_lopd/Tarjeta-de-residuos.pdf)

In order to delve deeper into some issues related to the previous request, on May 4, 2022, another information request was made to SCPSA regarding:

1. Description of the data sources used by the container opening system.
2. Description of the tables, fields, and sources of origin of the data (at the table field level) stored in the following databases: Clients, SCM, openings, datamart.
3. Regarding the Tableau tool used to exploit the DATAMART database:
  - a. Types of reports generated by this tool.
  - b. Details of the information contained in the different types of reports generated by this tool and the source of that information (database, table, and field, or other if it does not come from a database).
  - c. Copy of the reports generated by this tool (1 example of each type of report generated).
4. Justification that the mobile application does not use or store any data related to the geolocation of the mobile device.
5. Regarding the contracts of data processing managers, the documentation provided indicates that there are three companies awarded the contract for the supply of electronic opening cards for containers, but only the contracts of two of them have been sent. Therefore, the contract formalized with the third company was requested.
6. The reported documentation indicates that SCPSA is within the scope of application of Royal Decree 3/2010, of January 8, which regulates the National Security Scheme in the field of Electronic Administration having

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A review of the adequacy status was carried out by the external consultant Auren in 2021, from which a Master Plan was developed with measures to be adopted to continue with the adequacy process. A copy of this Master Plan was requested.

7. If there are different daily uses that can be configured in the cards and mobile devices to open the waste containers more frequently and/or on more days throughout the week, with a description, if applicable, of the different configurations that can be established in the cards and mobile devices.

8. Regarding the management of blacklists:

- a. Circumstances or reasons that lead to a card or mobile device being included in this list.
- b. Consequences for the addresses/users.
- c. If an address is included in the blacklist, can it make requests through the electronic headquarters form? Is its address disabled from the list of enabled addresses in that form as a consequence of its inclusion in the blacklist?

On May 10, 2022, SCPSA requested an extension of the deadline to submit the required information on May 4, 2022, which was granted on May 11, 2022.

On May 18, 2022:

- The following website was accessed, which contains general data, specifically, the population of the waste collection area corresponding to the years 2019 and 2020, from the company Servicios de la Comarca de Pamplona, S.A.:

<https://www.mcp.es/sites/default/files/memorias/memoria2020/es/perfil-entidad/datos-generales.htm>

- The business data of SCPSA was consulted in Axesor.

- The following website was accessed, which contains the implementation calendar for the electronic opening container system for the years 2022 and 2023:

<https://www.mcp.es/sites/default/files/documentos/Calendario%20de%20implantacio%CC%81n%20contenedores%20-%20marzo%202022.pdf>

On May 26, 2022, SCPSA responded to the request of May 4, 2022, indicating, in summary, the following:

1. The data source used for the container opening system is the Territorial Wealth Registry, although the database of clients is fed through municipalities and builders via manual inclusion and does not affect the issuance and sending of cards.
2. Regarding the Tableau tool, it details the reports generated by it in relation to the exploitation of the DATAMART database.
3. "All cards and devices can open any organic waste and residual container that has the system already implemented at any time of the day every day of the week."
4. "The term 'blacklist' is used to inform the card system that the cards included in it cannot open containers." It then lists a non-exhaustive list of different cases that lead to a card being included in such a "blacklist."

SCPSA indicates that "the inclusion of a waste card in a blacklist does not entail any consequences for addresses or users. It will always be possible to request new cards that allow an address to open the organic and residual containers."

Finally, SCPSA states that "Addresses can only enter a blacklist due to the removal of the postal address of the property from the municipal street directory. In this case, that address is disabled from the card request form, and requests for that address that no longer exists could not be made."

To this writing, SCPSA attaches the following documentation:

- Screenshots of the different customer tables, SMC, openings, and datamart.
- A document from ID&A; stating that "the SIGMA MCP mobile application, developed and implemented by ID&A;, does not use or store any data related to the geolocation of the mobile device."
- "Framework agreement for the supply of contactless cards for use in the waste service of the Comarca de Pamplona. File \*\*\*EXPEDIENTE.1", lot 1, signed between SCPSA and Industrias



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- "Framework agreement for the supply of contactless cards for use in the waste service of the Comarca de Pamplona. File \*\*\*EXPEDIENTE.1", lot 1, signed between SCPSA and Gureak Marketing, S.L.U.

- "Framework agreement for the supply of contactless cards for use in the waste service of the Comarca de Pamplona. File \*\*\*EXPEDIENTE.1", lot 1, signed between SCPSA and Calmell, S.A.

- "Framework agreement for the supply of contactless cards for use in the waste service of the Comarca de Pamplona. File \*\*\*EXPEDIENTE.1", lot 2, signed between SCPSA and Gureak Marketing, S.L.U.

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- "Framework agreement for the supply of contactless cards for use in the waste service of the Pamplona Region. File \*\*\*EXPEDIENTE.1", lot 2, signed between SCPSA and Industrias Francisco Botella, S.L.

- "Framework agreement for the supply of contactless cards for use in the waste service of the Pamplona Region. File \*\*\*EXPEDIENTE.1", lot 2, signed between SCPSA and Calmell, S.A.

- Director plan for information security and compliance with the National Security System carried out by Auren.

On June 6, 2022, the following website was accessed, which contains the frequently asked questions of the campaign for the implementation of the new system of residual and organic waste containers:

[https://www.mcp.es/sites/default/files/documentos/V4%20FAQs%20nuevo%20sistema%20apertura%20contenedores\\_2022%20CAST.pdf](https://www.mcp.es/sites/default/files/documentos/V4%20FAQs%20nuevo%20sistema%20apertura%20contenedores_2022%20CAST.pdf)

On June 10, 2022, documentation regarding the SIGMA MCP mobile application menu was incorporated into the inspection proceedings.

SEVENTH: On November 16, 2022, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the complained party, in accordance with the provisions of articles 63 and 64 of the LPACAP for the alleged infringements of article 6.1. of the GDPR, classified in article 83.5.a) of the GDPR; of articles 12.1, 13, and 14 of the GDPR, classified in article 83.5.b) of the GDPR; of article 30.1 of the GDPR, classified in article 83.4.a) of the GDPR; and of article 35 of the GDPR, classified in article 83.4.a) of the GDPR.

The aforementioned initiation agreement was notified to the complained party, in accordance with the rules established in the LPACAP, on November 17, 2022.

EIGHTH: With a registration entry date of November 21, 2022, the complained party requested an extension of the deadline to submit allegations, which was granted on November 22, 2022.

NINTH: The complained party submitted a written statement of allegations on December 12, 2022, in which, in summary, it states:

1.- Processing of personal data.

It agrees that the postal address is a personal data.

It also acknowledges that when new cards are requested during the exploitation phase, information from the applicant is collected.

It points out that "such data is not related or used to segregate the information obtained from the subsequent use of that specific card for the opening of the different devices."

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2.- It expresses its agreement that the complained party is responsible for the processing subject to this procedure.

### 3.- Legality of the processing.

The complained party states that "in the exercise of its competencies for the collection, transport, and treatment of domestic waste, it carries out the processing of personal data through the implementation of smart containers as necessary for the fulfillment of a mission of public interest and in the exercise of public powers conferred by the legal system," subsequently indicating that with the implementation of such a system "it only aims to comply with and enforce clear objectives of separate collection and avoidance of improper waste," which, it refers, derive from the following regulations:

- Directive 2018/851 of the Council and the Parliament, which amends Directive 2008/98/EC on waste.
- Foral Law 14/2018, on waste and its taxation.
- Law 7/2022, on waste and contaminated soils for a circular economy (hereinafter, LRSCEC).

It points out that the objectives of selective collection "directly involve citizens, and therefore their citizenship, and have even sanctioning consequences for them in case of non-compliance."

It refers to the last paragraph of article 25.2 of the LRSCEC, which expressly states:

"Among the collection models for the previous fractions established by local entities, the most efficient collection models, such as door-to-door or the use of closed or smart containers that guarantee similar collection ratios, must be prioritized."

It indicates that between 2013 and 2015, it implemented a system of "closed containers, without identification of the generator/producer of waste by placing the 5th Container for Organic Matter, whose opening was carried out with a mechanical key.

(...)

The general implementation experience of closed containers without identification was not successful at all, thus remaining far from being able to meet at any time collection ratios similar to door-to-door or to comply with the quantitative requirements and high-quality recycling and the objectives established in the LRSCEC."

It states that "to fulfill these purposes and objectives, the LRSCEC and the Foral Law 14/2018 establish, as we have seen, important obligations for public administrations, which extend, of course, to the fulfillment of the objectives of

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prevention and management, but which are also accompanied by important activities of information, exercise of regulatory power, and oversight, inspection, and sanction; furthermore, in the case of local entities, they are entrusted with the activity of providing the mandatory service of collection, transportation, and treatment of domestic waste (Article 12.5.a).

Therefore, it later indicates that "without the necessary limited processing of personal data required for separate collection through intelligent containers referred to by the Law itself, it is impossible to fulfill the obligations and objectives established by it, and it must be argued conversely that there is no alternative to this option; if there were one, it should be argued contradictorily."

It also refers to Article 11.3 of the LRSCEC, which obliges local entities to establish, within three years from the entry into force of this law, a fee or public non-tax asset provision, differentiated, that allows for the implementation of pay-as-you-throw systems.

The above, the responding party indicates, is impossible if it is not determined "in a differentiated manner the actual amount of waste generated/produced by each postal address of each of the fractions. This necessarily and inescapably requires the processing of data from the separate collection articulated through container systems, whether intelligent or door-to-door, since otherwise, it is materially impossible."

The responding party points out that the failure of local entities to meet the selective collection objectives is sanctionable, since Article 108.3.w) of the LRSCEC classifies as serious infractions "the failure to establish separate collection for the fractions of waste mentioned in Articles 25, 29, and 30, as well as the failure to comply with the maximum percentages of improper waste that may be established."

It considers that "This means that local entities must have means to control how their citizens separate their waste at source and how they dispose of it in the appropriate container, because otherwise the consequences are clear and, in the end, those sanctions imposed on local entities will ultimately be paid by the non-compliant neighbors through the corresponding impact on the fee.

In fact, Article 111.3 LRSCEC not only empowers local entities to sanction the uncontrolled abandonment, dumping, or disposal of waste for which they are responsible for collection and management, but also the failure to comply with the delivery conditions set forth in the ordinances, among which must be included the failure to separate waste at source."

For the reasons stated, the responding party understands that "the processing of personal data carried out for the articulation of the separate collection system for domestic waste (organic fraction, residual fraction) is absolutely lawful and necessary for the fulfillment of the obligations established by European, state, and regional legislation for the performance of a mission carried out in the public interest, in defense of environmental interest, which has the nature of a constitutional obligation, as deduced from Article 45.2 of the Spanish Constitution that establishes the...

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obligation of public authorities to ensure the rational use of natural resources."

It points out that numerous Spanish municipalities have established the same system. It also refers to various statements from data protection control authorities that analyze door-to-door systems such as that of smart containers:

- Reports 282/2018, 6/2020, 60/2021, 72/2021, and 76/2021 from the Catalan Data Protection Authority.

- Opinion D18-015 from the Basque Data Protection Agency.

It concludes by mentioning two resolutions from the AEPD, in which one complaint was archived and another was inadmissible concerning the exercise of rights related to this opening system, resolutions that, the responding party understands, are based "precisely on the lawfulness and necessity of data processing, and analyzing these reasons, the AEPD has deemed the actions of MCP/SCPSA to be lawful."

#### 4.- Transparency of information.

- Regarding the irregularity of articles 13.1.c) and 14.1.c) of the GDPR (the purposes of processing to which personal data is destined, as well as the legal basis for processing), on one hand, it refers to the allegations made in the previous section, while on the other hand, it indicates that the acceptance of such allegations would imply the correction of the information to be provided to the data subject by identifying the specific enabling norm, which, it indicates, would be Law 7/2022, of April 8, on waste and contaminated soils for a circular economy, the Foral Law 14/2018 on waste and its taxation, and Law 7/1985, of April 2, regulating the Bases of the Local Regime.

- Regarding the irregularity of article 14.2.f) of the GDPR (the source from which the personal data originates), it indicates that it is indeed an error and will be corrected, "since at the time of implementation only data related to the postal address and opening data are processed."

- Regarding the irregularity of articles 13.2.f) and 14.2.g) of the GDPR (the existence of automated decisions, including profiling), it states that the implementation of the waste container opening system through an electronic card linked to the postal address "does not allow for the creation of reliable profiles in the terms contained in article 14.2.g) in relation to article 22 of the General Data Protection Regulation," since:

- a) "There is no legal effect that derives from the information obtained from the use of the cards, taking as a reference the examples of the production of legal effects included in the guidelines on automated individual decisions and profiling for the purposes of Regulation 2016/679 prepared by the Article 29 Working Party on Data Protection."

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b) Regarding the requirement that automated processing “significantly affects you in a similar way,” the responding party indicates that “without prejudice to the fact that it is a legally indeterminate expression, we must point out that no such effect occurs in any case, and this is because no such profiling is carried out.”

It continues by stating that “when in the future it is intended to produce legal effects on users (payment by generation, for example), measures must be introduced that justify to the user and guarantee the accuracy of the data. By way of example:

- regulatory modification.
- change of legal regime so that the cards are non-transferable.
- association of the card with the person liable for payment of the service.

This will require informing users that the use of such cards will generate legal effects or significantly affect the person liable for payment and other obligations indicated in this resolution, such as impact assessment.

While for the purposes intended in this phase of the project (achieving the regulatory objectives of waste separation), it is sufficient to process the data of the postal address.”

For the reasons stated, it indicates that “no automated decision is made concerning the information managed within the framework of the implemented waste collection system, which would indeed occur, for example, in the case of setting the waste fee based on the number of openings or sanctioning for lack of use without any other criterion than the openings.”

- Regarding the irregularity of article 13.2.e) of the GDPR (whether the communication of personal data is a legal or contractual requirement, or a necessary requirement to enter into a contract, and whether the data subject is obliged to provide personal data and is informed of the consequences of not providing such data), the responding party indicates that it is an error and will be corrected.
- Finally, regarding the irregularity related to the fact that at the time of providing information to the data subjects it is indicated that the responsible party is SCPSA, while both the email for exercising rights and the website where additional privacy information about the system is found are from MCP, the responding party indicates that “it will be modified to indicate in all communications that the responsibility for data processing will be carried out by the Pamplona County Council.”

#### 5.- Record of processing activities.

The responding party indicates that “in the documentation provided by this entity within the framework of the complaint file EXP202105962, an extract of the Record of Processing Activities related to the specific treatments associated with the complaint was submitted.

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This extract did not correspond to the complete Record of Activities held by SCPSA, where the identification and contact details of the Data Controller are indeed recorded.

It is for this reason that we share the opinion of the AEPD, stating that, indeed, the information mentioned in the sanctioning file must be included in the Record of Activities of Processing held by the entity.

#### 6.- Assessment of personal data impact.

The responding party indicates that “a specialized company was contracted for compliance with Royal Decree 3/2010, of January 8, which regulates the National Security Scheme in the field of Electronic Administration (ENS, hereinafter), and with Royal Decree 951/2015, of October 23, amending RD 3/2010. During the execution of this project, a review of certain aspects of Regulation (EU) 2016/679

(GDPR, hereinafter) and of Organic Law 3/2018 on Personal Data Protection (LOPDGDD) was carried out.

Among those aspects was the need to conduct impact assessments related to the different processing activities.

The result of this review yielded conclusions similar to those obtained in the analysis conducted by the entity itself, which summarized the lack of necessity to carry out an impact assessment regarding the processing of personal data derived from waste management."

It criticizes that the initiation agreement considers that an impact assessment must be made based on the following:

- Regarding the "Assessment or scoring, including profiling and prediction," it refers to what has already been stated regarding the fact that profiling is not conducted. It indicates, in relation to the letter sent during the pilot project, that "the information on the openings to the different addresses is merely a return of their own information (similar to the information that would be provided in an exercise of the right to access their personal data), but in no case is it cross-referenced with other information or processed with the aim of generating a specific profile that serves as a basis for an automated decision or that may significantly affect the data subjects."

Subsequently adding that "the data does not refer to and cannot be linked to a specific natural person nor is it related to natural persons but to a postal reference used to achieve the regulatory objectives in the field of waste, such as guiding the different information and awareness campaigns, which was the reason for the letter."

- Regarding "Systematic observation," it indicates that "it is not possible to carry out user observation since the information is segregated based on the postal address and not on the natural persons who deposit the waste, and because the cards are also not non-transferable or for personal use."

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- Regarding the criterion of "Large-scale data processing," it agrees that such a circumstance exists in the present case.

- Regarding the "Association or combination of datasets," it states that "it is not true that datasets are associated or combined." It explains that "The data related to transportation is managed directly by MCP, not by SCPSA, and is never cross-referenced with the data from the openings." Furthermore, it states that "all data processed in each of the two systems is reported to the users who, voluntarily, expressly request the use of the transport card for waste deposit, so that in no case can the reasonable expectations of the interested parties be exceeded."

- Regarding "Innovative use or application of new technological or organizational solutions," it states, on one hand, that it does not agree that the use of a card is considered a new technology or an innovative use, as it understands that it is a well-established and known technology. On the other hand, concerning the mobile application, it indicates that it is owned by ID&A; S.R.L., "which acts as the data controller for the data collected and processed for its proper functioning," indicating that its use is voluntary and that the data collected for the operation of the application is not transferred to SCPSA.

- Regarding the statement that "the processing itself 'prevents the interested parties from exercising a right or using a service or executing a contract,'" the responding party states, after invoking Recital 91 of the GDPR, that "The relevance of this recital is not so much whether exercising a right or using a service is prevented, but whether there is indeed a high risk to the rights and freedoms of the interested parties. A contrary interpretation would lead to the undesirable solution that any data processing prevents access to a service." It considers that "In this case, it cannot be said that there is a high risk to rights and freedoms since, as has been repeatedly stated, the data obtained is not even related to natural persons, but is only linked to a postal address."

TENTH: On January 12, 2023, it was agreed to open a phase for the presentation of evidence. It was also agreed to incorporate into the file, for evidentiary purposes, the complaint that gave rise to the

sanctioning procedure and its attached documentation; the documents obtained and generated during the admission phase of the complaint, the report of prior investigative actions, and the allegations to the initiation agreement of PS/00547/2022 presented by the responding party.

In the same document dated January 12, 2023, in which the opening of the evidence phase is communicated, the responding party is required to submit the following documentation:

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- Document certifying the results of waste separation at source from the closed container system, without identification of the waste generator/producer, through the placement of the 5th container for organic matter with mechanical key opening that was implemented between 2013 and 2015.
- Document certifying the results of waste separation at source from the current system of opening waste containers equipped with electronic locks corresponding to Access Control Equipment for such containers, operated via card or mobile application linked to a specific postal address.
- Since the written allegations to the initiation agreement stated that “an extract of the Activity Register of the Treatment related to the specific treatments related to the claim was sent,” as well as that “this extract did not correspond to the complete Activity Register held by SCEPSA, where the identification and contact details of the Data Controller are recorded,” it was required to send a complete copy of the activity register of personal data processing in its initial version, as well as copies of all subsequent versions in light of any addition, modification, or exclusion in its content (indicating the date of the change), certified by a competent body.

On January 26, 2023, a response was received from the party being claimed against regarding the requested evidence, attaching:

- Report issued by the Waste Department Management, certifying the results of waste separation at source, which presents, on one hand, the results of waste separation at source from the closed container system, without identification of the waste generator/producer, through the placement of the 5th container for organic matter with mechanical key opening that was implemented between 2013 and 2015, and, on the other hand, presents the results of waste separation at source from the current system of opening waste containers equipped with electronic locks corresponding to Access Control Equipment for such containers, operated via card or mobile application linked to a specific postal address.
- Activity Register of the Treatment approved by the Security Committee of SCPSA dated November 23, 2018.
- Activity Register of the Treatment following the expansion resulting from the sanctioning file initiated by the AEPD against MCP dated November 14, 2019.
- Activity Register of the Treatment approved by the Security Committee of SCPSA dated February 23, 2022.

FIRST: On June 9, 2023, a resolution proposal was made, proposing that the Director of the Spanish Agency for Data Protection impose a warning sanction on the MANCOMUNIDAD DE LA COMARCA DE PAMPLONA, with NIF P3112070B, for the infringement of the following articles:

- Article 6.1 of the GDPR, classified under Article 83.5.a) of the GDPR.
- Articles 12.1, 13, and 14 of the GDPR, classified under Article 83.5.b) of the GDPR.
- Article 30.1 of the GDPR, classified under Article 83.4.a) of the GDPR.
- Article 35 of the GDPR, classified under Article 83.4.a) of the GDPR.

As well as ordering the MANCOMUNIDAD DE LA COMARCA DE PAMPLONA, with NIF P3112070B, that pursuant to Article 58.2.f) of the GDPR, within XX, certify that it has ceased all processing of personal data related to the system of opening waste containers equipped with electronic locks corresponding to Access Control Equipment (ECA) for such containers, operated via card linked to a specific postal address, transport card activated for the opening of containers, or mobile application linked to a specific postal address.

The aforementioned resolution proposal was notified to the party being claimed against, in accordance

with the rules established in the LPACAP, on June 12, 2023.

TWELFTH: On June 12, 2023, the following correction of errors of the resolution proposal was made:  
Where it says:

"That the Director of the Spanish Agency for Data Protection orders the MANCOMUNIDAD DE LA COMARCA DE PAMPLONA, with NIF P3112070B, that pursuant to Article 58.2.f) of the GDPR, within XX, certify that it has ceased all processing of personal data related to the system of opening waste containers equipped with electronic locks corresponding to Access Control Equipment (ECA) for such containers, operated via card linked to a specific postal address, transport card activated for the opening of containers, or mobile application linked to a specific postal address."

Say:

"That the Director of the Spanish Agency for Data Protection orders the MANCOMUNIDAD DE LA COMARCA DE PAMPLONA, with NIF P3112070B, that pursuant to Article 58.2.f) of the GDPR, within 10 days certify that it has ceased all processing of personal data related to the system of opening waste containers equipped with electronic locks corresponding to Access Control Equipment (ECA) for such containers, operated via card linked to a specific postal address, transport card activated for the opening of containers, or mobile application linked to a specific postal address."

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The aforementioned correction of errors was notified to the responding party, in accordance with the rules established in the LPACAP, on June 13, 2023.

THIRTEENTH: On June 15, 2023, the responding party requested an extension of time to submit allegations.

On June 16, 2023, the responding party was notified of the granting of a new deadline to submit allegations.

FOURTEENTH: The responding party submitted a written statement of allegations on July 3, 2023, in which, in summary, it states the following:

1.- Legitimacy of the processing.

The responding party considers that two resolutions from the AEPD "indicate" the legitimacy of the processing it carries out. Specifically, it refers to the resolution of File 2022/03664 and to the resolution of File 2022/05572.

It continues by stating that the processing of personal data it performs "finds its legitimacy both in the performance of a mission in the public interest and in the fulfillment of a legal obligation."

To this end, it invokes:

- Four fundamental principles that the European Union has indicated regarding waste management: The principle of prevention, the principle of "the polluter pays," the preventive principle, and the principle of proximity.
- The State Framework Plan for Waste Management 2016-2022.
- Law 22/2011, of July 28, on waste and contaminated soils.
- Law 7/2022, of April 8, on waste and contaminated soils for a circular economy.

It criticizes that the proposed resolution states that "through the postal address, they can identify all the individuals registered at the same address," as it understands that "the postal address does not unequivocally, accurately, and completely identify the person carrying out the recycling task of waste, since with just the postal address, it cannot be determined who went to the container." It even criticizes that the proposed resolution refers to the fact that an "indirect identification" is sufficient, as the responding party considers that "identification based solely on the postal address could lead to incorrect identification (or, rather, to not identifying)."

It believes that the processing of personal data it carries out does not allow for knowledge of the habits of any individual "since not knowing who performs it on each occasion (one day it may be the homeowner, another day it may be the cleaning person, etc.) would not be correct to speak of habits since they do not even correspond to the same identified person and, in reality, habits are associated

with individuals."

It also criticizes that the proposed resolution indicates that the aforementioned regulations "neither obligate nor legitimize it to carry out any processing of personal data to exercise its competencies in the collection, transportation, and treatment of domestic waste," as the responding party believes that it does "legitimize it considering that the objectives are initially set by Europe, by the Constitution itself that empowers the Commonwealth to develop its competencies, and by the regional and national laws."

It considers that the processing of the postal address "if it cannot be considered essential, is highly convenient and entirely appropriate to fulfill the legal obligation and the mission in the public interest in light of the results of the recycling objectives," results which it attaches.

It states that its data protection officer is preparing a risk analysis regarding the "management of new cards (...) to assess whether there is a high risk to the fundamental right of data protection of the interested parties when processing such data when renewal is requested."

Since the proposed resolution indicates that the MCP ordinance "does not include as one of its objectives the collection of data on the use made of the different containers by each household," the responding party expresses "its total commitment to modify the ordinance if the Agency deems it necessary," although it considers that such omission "does not imply that it cannot be done since the collection of data is not so much the objective but a means to achieve the objective of achieving recycling goals."

It considers that the statement made by the proposed resolution saying that "between the model of opening closed containers with a card without any type of link to any data, and the current system of opening containers using an electronic card linked to a personal data such as the postal address, there are intermediate formulas that have not been studied by the responding party" is incorrect, as it has indeed carried out such a study.

It points out that it has analyzed four different formulas:

- Open containers on the street that do not require any mechanism for their opening: They do not collect any personal information but their efficiency in achieving waste separation at source is low.
- Closed containers on the street that require the use of an opening mechanism, but do not allow for the recording of information on the openings made: It indicates that the level of personal information usage required is low, as is their efficiency in achieving waste separation.
- Closed containers on the street that require the use of an opening mechanism and allow for the recording of information on the openings made: It states that the level of personal information usage is medium (postal address but without...

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possibility of identifying the deposited waste), while the level of efficiency for achieving waste separation at source is medium-high.

- Door-to-door collection, that is, waste collection at the door of each home and establishment: The level of use of personal information is high, as it allows for the identification of both the contributor and the deposited waste, while the level of efficiency for achieving waste separation at source is very high. For the above reasons, the responding party considers that the system it uses "is the intermediate formula that combines respect for the right to data protection of the interested parties and the appropriate efficiency - without using invasive methods that are, at the same time, much more efficient."

It continues to indicate that "before the 2022 law, objectives were already established and the principle that 'the polluter pays'; from which payment by generation derives, is a classic of environmental regulation and is not something that 'appears or arises in 2022.' Therefore, the Commonwealth has limited itself to following the line set by Europe many years before." It also points out that this principle was already applied by Law 22/2011, of July 28, on waste and contaminated soils, by stating in its article 11 that "In accordance with the principle of the polluter pays, the costs related to waste management shall be borne by the initial waste producer, the current holder, or the previous holder of waste in accordance with the provisions of articles 42 and 45.2."

The responding party also claims that the processing of personal data it carries out is legitimized by its competencies in the area of inspection. It indicates that the results shown from the different waste



collection systems derive "from the information generated in inspection and control tasks." It also states that it has begun to "implement more precise inspection and control actions." Specifically, it indicates:

- That it carried out an inspection campaign in April 2023 in those businesses and establishments that were not using the residual and organic matter containers.
- That it has planned an inspection action, based on the identification of homes and businesses with poor practices, in one of the neighborhoods with the worst waste separation results and the highest abandonment of waste on the street.

Finally, the responding party indicates that the conclusion of Opinion D18-015 from the Basque Data Protection Agency states that "the Commonwealth will be legitimized to process, as the data controller, the data of the users of the service strictly necessary for the exercise of the powers attributed to it by the Ordinance." For this reason, the responding party considers that, by making an analogous interpretation, it is legitimized "for the exercise of the powers attributed to it by the Ordinance and, therefore, the processing of information on container openings is considered legitimate."

#### 2.- Record of processing activities.

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The responding party indicates that it is currently updating the record of processing activities to ensure it fully complies with the requirements of Article 30 of the GDPR.

#### 3.- Data protection impact assessment.

The responding party indicates that it has contracted a new law firm, which has conducted the data processing impact assessment related to this file, an assessment that it attaches to its allegations.

#### 4.- Proportionality of the sanction.

The responding party considers that the sanction consisting of the cessation of all processing of personal data related to the waste container opening system through an electronic card or mobile application linked to the home is disproportionate, as it does not achieve an effective, dissuasive, and proportionate reaction to the violation.

It also considers that the proposed resolution has not taken into account the circumstances outlined in Article 83 of the GDPR when determining the imposed sanction.

For this reason, the responding party offers "the immediate and total adoption of numerous corrective measures to achieve full compliance of the processing with the requirements of the regulations."

Specifically, it refers to:

"1. Adaptation of the Record of processing activities to the requirements of Article 30 of the European Data Protection Regulation.

2. Improvement of the duty of information emphasizing the principle of transparency.

3. Carrying out the Data Protection Impact Assessment of the mobile application for opening the container and, if the requirements of Article 36 of the European Data Protection Regulation are met, conducting prior consultation with the AEPD to determine the possibility of its use.

4. Modification of the ordinance to specify and expressly include the objective indicated by the AEPD regarding recycling.

5. The use of the mobile application could be eliminated if the AEPD deems it appropriate once the Data Protection Impact Assessment of the mobile application for opening the container has been carried out and, if the requirements of Article 36 of the European Data Protection Regulation are met, conducting prior consultation with the AEPD.

6. The Commonwealth shows its utmost willingness to adopt multiple measures to fully adapt the processing of personal data.

7. Increase training for all employees regarding their obligations in data protection matters.

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8. Review the security measures applied to the personal data subject to processing and, in the event that a high risk to personal data is detected, increase the existing measures.
9. Assess the possibility of adhering to codes of conduct and/or certification mechanisms regarding data protection.
10. Create communication campaigns aimed at citizens emphasizing the legal and public interest reasons that justify the processing.

The responding party attached the following documentation to their written allegations regarding the proposed resolution:

- Impact assessment report related to data protection for the waste card project and other devices, dated June 20, 2023.
- Communication from the Director of the AEPD to the Ombudsman dated September 8, 2020.
- Letter, dated February 2020, regarding the pilot experience of the new waste collection system with a card that was sent to residents.
- Document sent by the Ombudsman of Navarre to the Pamplona Region Community on June 28, 2023.
- Resolution from the Director of the AEPD dated June 1, 2020, resolving PS/00201/2019.
- Existing waste collection systems and the use of personal information in inspection and control tasks.
- Transfer of complaint and request for information from the AEPD to SCPSA within file EXP202205572.
- Resolution from the AEPD dated June 24, 2022, of non-admission to processing of the complaint within file EXP202205572.
- Information sent by the Data Protection Officer of SCPSA to the AEPD within file EXP202205572.
- Use of information on container openings from residences and businesses in inspection and control tasks of MCP/SCPSA.
- Report prepared by MCP in May 2023, "Action Campaign in Establishments with Zero Openings."
- Results of the Action Campaign in Establishments with Zero Openings conducted in April 2023.

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- Proposal for action, dated May 2023, "Experimental Communication Plan in Critical Areas."
- Feasibility study on "supply, installation, commissioning, operation, and maintenance of an access control system for containers with user identification in the Pamplona Region," dated May 12, 2020.
- Phases of implementation of the waste container opening system equipped with electronic locks corresponding to Access Control Equipment (ECA) for such containers, activated by a card linked to a specific postal address, transport card activated for the opening of containers, or mobile application linked to a specific postal address.
- Information sent by the Data Protection Officer of SCPSA to the AEPD within file EXP202203664.
- Resolution from the Director of the AEPD dated May 19, 2022, agreeing to archive the proceedings of file EXP202203664.
- Allegations presented by MCP regarding the initiation agreement of PS/00547/2022.
- Commitment from the President of MCP, dated July 3, 2023, to modify the regulatory ordinance on waste management to expressly include "the collection of data on the use of the various containers by each postal address."
- Commitment from the President of MCP, dated July 3, 2023, that if the AEPD does not consider the use of the mobile application appropriate, it will be eliminated. Furthermore, they commit to carrying out the corresponding Data Protection Impact Assessment and, if the requirements of Article 36 of the European Data Protection Regulation are met, to consult the AEPD in advance to determine the

possibility of its use.

- The tender document for "Consulting Services for the development of the Information Security Master Plan for SCPSA and execution of technical measures" dated October 2019.

FIFTEENTH: On July 14, 2023, the responding party submitted a document indicating that "attached, as a complement to the allegations presented on July 3 (...), is the risk analysis document referred to on page 26 of said allegations."

On the mentioned page of the allegations to the proposed resolution, the responding party stated that their data protection officer was preparing a risk analysis related to the "management of new cards (...) to assess whether there is a high risk to the fundamental right of data protection of the interested parties when processing such data when requesting renewal."

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The document presented by the responding party on July 14, 2023, is titled "risk analysis." On page 4 of this document, there is a reference, for the first time, to the processing of personal data concerning which such risk analysis is made, where it refers to "Processing 4: files."

From the actions taken in this procedure and the documentation in the file, the following has been established:

#### PROVEN FACTS

FIRST: The Statutes of the Pamplona Region Commonwealth were published in the Official Bulletin of Navarra No. 69, on April 8, 2011.

Article 5.1 states:

"The purpose of the Commonwealth is the exercise of the competencies, legally established and within the territorial scope defined in the following article, in the following matters for which it holds ownership:

(...)

b) Collection, processing, and utilization of urban waste.

(...)"

SECOND: The Waste Management Ordinance of the Pamplona Region Commonwealth was amended on October 25, 2021 (Official Bulletin of Navarra No. 259, on November 12).

In Articles 1, 2, and 3 it states:

"Article 1. COMPETENT ENTITY. The Pamplona Region Commonwealth (hereinafter referred to as the Commonwealth) is a local associative entity, among whose purposes is the provision of waste collection and processing services, under the terms of the local entities or areas of action in which, at any given time, the Commonwealth holds ownership of the aforementioned service, with the aim of protecting the environment and the health of individuals.

Article 2. LOCAL COMPETENCIES. The Commonwealth is competent for the collection, transport, and processing of domestic waste generated and deposited within its scope in the manner established in this ordinance and under the terms provided in waste legislation and local regime legislation.

The Commonwealth has the power of surveillance and inspection and the sanctioning power within the scope of its competencies.

The Commonwealth may:

- Approve within the framework of its competencies and in coordination with the national framework plan and with the regional waste management plans, its own waste management program and/or its waste prevention program. Where applicable, the waste management plan may include the waste prevention program.

(...)

Article 3. METHOD OF SERVICE MANAGEMENT. The Commonwealth manages the services referred to in the previous article through a management company, Servicios de la Comarca de Pamplona, S.A. (SCPSA), established for this purpose, in accordance with the provisions of the

current regulations on the provision of local services.”

THIRD: The responding party has been implementing, since autumn 2021, a system for opening waste containers equipped with electronic locks corresponding to Access Control Equipment (ECA) for such containers, activated by a card linked to a specific postal address, a transport card activated for the opening of containers, or a mobile application linked to a specific postal address.

FOURTH: On November 18, 2021, the complaining party filed a complaint with the AEPD denouncing the system for opening waste containers through an electronic card that SCPSA has implemented, arguing that it violates the duties of data minimization, data accuracy, and information, as well as for not having conducted a prior impact assessment before processing the data.

FIFTH: It is established that in autumn 2021, cards linked to the postal address for opening the waste containers equipped with electronic locks were distributed, along with an informative letter explaining how to use the electronically opened containers, which includes the following reference to the privacy policy:

“In relation to the data recorded by these cards and their subsequent processing, we are pleased to inform you that: Each of the cards delivered incorporates a device that allows recording the number of openings of different containers, data that will be associated with the postal address indicated on the outside of the card. Since these are data, sometimes related to an identified or identifiable natural person, the information obtained regarding the opening of containers will be processed in accordance with personal data protection regulations. All data collected as a result of the use of these cards will be processed under the responsibility of Servicios de la Comarca de Pamplona, S.A. (SCPSA), to analyze the use of the containers in the fractions of organic matter and others, and specifically to know their degree of use in order to achieve the applicable regulatory objectives, as well as to carry out information activities, promotion of the service, and its results. We also inform you that you may exercise your rights of access, rectification, deletion, and the rest of the rights that assist you, by contacting the Data Controller at C/ Jorge Juan, 6 [www.aepd.es](http://www.aepd.es) 28001 – Madrid [sedeagpd.gob.es](mailto:sedeagpd.gob.es) 31/111

email: [protecciondatos@mcp.es](mailto:protecciondatos@mcp.es). You can consult additional information about privacy at [www.mcp.es/fichadatosresiduos](http://www.mcp.es/fichadatosresiduos)”

It is also certified that the following text appears on the cards distributed during this implementation phase:

“This card is the property of Servicios de la Comarca de Pamplona SA and its use is subject to the conditions determined by it.

Responsible: Servicios de la Comarca de Pamplona SA

You can exercise your rights at [protecciondatos@mcp.es](mailto:protecciondatos@mcp.es)

Additional information at [www.mcp.es/fichadatosresiduos](http://www.mcp.es/fichadatosresiduos)”

SIXTH: The reports issued by the Data Protection Officer of SCPSA on February 4, 2022, and on April 4, 2022, indicate that following the distribution of electronic cards for the opening of waste containers, individuals have been able to: Request a new card (in cases of loss, malfunction, breakage, change of address), request the activation of the transport card for the opening of waste containers, request credentials to activate the mobile application for opening waste containers.

It is certified that in the telematic requests for new cards linked to the postal address, the following data must be completed: ID number, first name and last name, email address, phone number (optional), and postal address.

It is certified that in the in-person requests for new cards linked to the postal address, the following data must be completed: ID number, first name and last name, signature, email address, phone number, and postal address.

It is certified that in the telematic requests for activation of the transport card for the opening of waste containers, the following data must be completed: ID number, first name and last name, email address, postal address, phone number (optional), and transport card ID (optional).

It is certified that in the in-person requests for activation of the transport card for the opening of waste containers, the following data must be completed: ID number, first name and last name, signature, transport card ID, postal address, phone number, and email address.

It is certified that in the telematic requests related to the mobile application (new user, remember user, remember password, or incidents), the following data must be completed: ID number, first name and last name, email, phone number (optional), and postal address.

It is certified that in the in-person requests related to the mobile application (new user, remember user, remember password, or incidents), the following data must be completed: ID number, first name and last name, signature, postal address, phone number, and email address.

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SEVENTH: It is recorded that in the requests for new cards linked to the postal address, for the activation of the transport card for the opening of waste containers, and for credentials for the mobile application for opening containers, the following is indicated:

“In compliance with the provisions of the General Data Protection Regulation, we inform you that the data collected in this form will be incorporated into a file for the purpose of managing the service of opening containers via electronic card. This data will not be transferred to third parties except as legally provided. Furthermore, we inform you that the data controller will be SCPSA, to whom you may address your rights of access, rectification, deletion, and the other rights that assist you through the email [protecciondatos@mcp.es](mailto:protecciondatos@mcp.es).

You can consult additional information about privacy at the following link [www.mcp.es/fichadatosresiduos](http://www.mcp.es/fichadatosresiduos).”

EIGHTH: It is recorded that when a new electronic card is requested for the opening of containers, the Citizen Attention Service of MCP sends a letter to the applicant with the aforementioned card and a text indicating the following regarding data protection:

“In relation to the data recorded by these cards and their subsequent processing, we are pleased to inform you that: ‘Each of the cards delivered incorporates a device that allows the number of openings of the different containers to be recorded, a data point that will be associated with the postal address indicated on the outside of the card. Since these are data sometimes related to an identified or identifiable person, the information obtained regarding the opening of containers will be processed in accordance with personal data protection regulations. All data collected as a result of the use of these cards will be processed under the responsibility of Servicios de la Comarca de Pamplona, S.A. (SCPSA), to analyze the use of containers in the organic matter and residual fractions, and specifically to know their degree of use in order to achieve the applicable regulatory objectives, as well as to carry out information activities, service promotion, and its results. Furthermore, we inform you that you may exercise your rights of access, rectification, deletion, and the other rights that assist you by contacting the Data Controller via the email [protecciondatos@mcp.es](mailto:protecciondatos@mcp.es). You can consult additional information about privacy at [www.mcp.es/fichadatosresiduos](http://www.mcp.es/fichadatosresiduos).’”

NINTH: It is recorded that when the activation of a transport card for electronically opening waste containers is requested, the Citizen Attention Service of MCP sends a response letter to the applicant indicating that their “personalized Urban Transport card has been enabled to open the containers in the area indicated in your request,” as well as the following text regarding data protection:

“This electronic communication has been sent by Servicios de la Comarca de Pamplona, S.A. (SCPSA), responsible for the processing of the provided data. This email address has been provided by you for the receipt of messages. You receive this electronic communication based on the request for card activation.

You may exercise your rights of access, rectification, cancellation, opposition, and other rights guaranteed by current regulations on protection by addressing them to the Data Controller via the email [protecciondatos@mcp.es](mailto:protecciondatos@mcp.es). You can consult additional information about privacy at [www.mcp.es/fichadatosresiduos](http://www.mcp.es/fichadatosresiduos).”

TENTH: It is recorded that when the request for sending credentials to use the mobile application for

opening waste containers is made, the Citizen Attention Service of MCP sends a response letter to the applicant in which a username and password are provided, as well as a text indicating the following regarding data protection:

“This electronic communication has been sent by Servicios de la Comarca de Pamplona, S.A. (SCPSA), responsible for the processing of the provided data. This email address has been provided by you for the receipt of messages. You receive this electronic communication based on the request related to the mobile application.

You may exercise your rights of access, rectification, cancellation, opposition, and other rights guaranteed by current regulations on protection by addressing them to the Data Controller via the email [protecciondatos@mcp.es](mailto:protecciondatos@mcp.es). You can consult additional information about privacy at [www.mcp.es/fichadatosresiduos](http://www.mcp.es/fichadatosresiduos).”

ELEVENTH: It is recorded that the respondent indicated in their document dated January 24, 2022, registered with the AEPD, that in the link related to additional information about privacy, regarding the “FILE OF ELECTRONIC OPENING DEVICES,” dated October 15, 2021, the following appeared:

“- Who is responsible for processing your data?

Identity: Servicios de la Comarca de Pamplona, S.A.

Postal address: Calle General Chinchilla, nº 7, 31002. Pamplona

Email: [protecciondatos@mcp.es](mailto:protecciondatos@mcp.es)

Data Protection Officer: Chaverri & Loitegui, Abogados, Consultores

Address of the Data Protection Officer: Avda. Baja Navarra, 2, Entreplanta of.3

Email: [protecciondatos@mcp.es](mailto:protecciondatos@mcp.es)

- For what purpose do we process your data?

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The opening data of the containers and organic waste and residual mailboxes, and, where applicable, packaging obtained from each of the electronic opening devices enabled for this purpose will be processed to analyze the use of those containers and mailboxes and specifically to know the separation rates in order to achieve the applicable regulatory objectives, as well as to carry out promotional activities for the service and its results.

- How long do we keep your data?

The personal data collected will be retained for as long as necessary to fulfill the purpose for which they were collected and to determine any potential liabilities that may arise from the purpose and its processing, in addition to the periods established in the archival and documentation regulations.

- What is the legal basis for processing your data?

- The processing is necessary for compliance with a legal obligation applicable to the data controller.

- The processing is necessary for the performance of a task carried out in the public interest or in the exercise of public powers conferred on the data controller.

- The data provided by the data subject regarding the address associated with the opening devices.

- To whom will your data be communicated?

- No data communications to third parties are planned, except as legally provided.

- No international data transfers will be made.

- What are your rights when you provide us with your data?

Any person has the right to obtain information about the processing of their data.

Data subjects have the right to access their personal data, as well as to request the rectification of inaccurate data or, where appropriate, to request its deletion when, among other reasons, the data are no longer necessary for the purposes for which they were collected.

In certain circumstances, data subjects may request the limitation of the processing of their data, in which case we will only retain them for the exercise of rights or the defense of claims.

In certain circumstances and for reasons related to their particular situation, data subjects may object to the processing of their data. Servicios de la Comarca de Pamplona, S.A., will cease processing the data, except for compelling legitimate reasons, or for the exercise or defense of possible claims.

Similarly, the data subject has the right to data portability.

If you believe that your data has not been processed correctly, you can inform us via the email address

protecciondatos@mcp.es and subsequently contact the supervisory authority, or go directly to the supervisory authority.

- How have we obtained your data?
- From the usage data of the electronic opening devices by the data subject.
- From the Territorial Wealth Register approved by Foral Law 12/2006, of November 21.
- The types of data processed are:
- Identifying and contact data: Name, surname, associated postal address, email address, and phone number.
- Transaction data: Usage data of the electronic opening devices linked to the postal address.

TWELFTH: It is certified that the following additional information on data protection, dated June 9, 2020, regarding the "FILE OF ELECTRONIC OPENING DEVICES," was available on April 25, 2022, on the website [www.mcp.es/fichadatosresiduos](http://www.mcp.es/fichadatosresiduos), as stated in the diligence of the AEPD Inspection dated June 13, 2022:

"- Who is responsible for processing your data?

Identity: Servicios de la Comarca de Pamplona, S.A.

Postal address: Calle General Chinchilla, nº 7, 31002. Pamplona

Email: [protecciondatos@mcp.es](mailto:protecciondatos@mcp.es)

Data Protection Officer: Chaverri & Loitegui, Lawyers, Consultants

Address of the Data Protection Officer: Avda. Baja Navarra, 2

First floor, office 3

Email: [protecciondatos@mcp.es](mailto:protecciondatos@mcp.es)

- What purpose do we process your data for?

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The opening data of the containers for each of the cards will be processed to analyze the use of the containers in the fractions of organic matter and residual waste, specifically to know the separation rates in order to achieve the applicable regulatory objectives, as well as to carry out promotional activities for the service and its results.

- How long do we keep your data?

The personal data collected will be retained for as long as necessary to fulfill the purpose for which they were collected and to determine any potential liabilities that may arise from the purpose and its processing, in addition to the periods established in the archival and documentation regulations.

- What is the legal basis for processing your data?

- The processing is necessary for compliance with a legal obligation applicable to the data controller.

- The processing is necessary for the performance of a task carried out in the public interest or in the exercise of public powers conferred on the data controller.

- To whom will your data be communicated?

- There are no planned communications of data to third parties except those legally provided for.

- There will be no international data transfers.

- What are your rights when you provide us with your data?

Any person has the right to obtain information about the processing of their data.

Data subjects have the right to access their personal data, as well as to request the rectification of inaccurate data or, where appropriate, to request its deletion when, among other reasons, the data are no longer necessary for the purposes for which they were collected.

In certain circumstances, data subjects may request the limitation of the processing of their data, in which case we will only retain them for the exercise of rights or the defense of claims.

In certain circumstances and for reasons related to their particular situation, data subjects may object to the processing of their data. Servicios de la Comarca de Pamplona, S.A., will cease processing the data, unless there are compelling legitimate grounds, or for the exercise or defense of possible claims. Similarly, the data subject has the right to data portability.

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If you believe that your data have not been processed correctly, you can inform us via the email address [protecciondatos@mcp.es](mailto:protecciondatos@mcp.es) and subsequently contact the supervisory authority, or go directly to the supervisory authority.

- How have we obtained your data?
- From the usage data of the electronic opening devices by the data subject.
- From the Territorial Wealth Register approved by Foral Law 12/2006, of November 21.
- The types of data processed are:
- Identifying and contact data: Name and surname, associated postal address.
- Transaction data: Usage data of the electronic opening devices linked to the postal address.

THIRTEENTH: On April 4, 2022, SCPSA submitted a report from its data protection officer to the AEPD registry, dated the same day, in which it states, among other issues, the following:

"In relation to the Register of Processing Activities and understanding that it refers exclusively to the treatments related to waste management, the two treatments involved in the management are provided.

The first of these is the treatment of "FILES" which refers to the request for new cards by the data subjects and is managed as one more file among those existing in the entity.

The second is the so-called "WASTE CARDS AND OTHER OPENING DEVICES."

A detail of the information contained in the register of processing activities related to these two treatments is attached, indicating that no modifications have occurred since their creation.

In this regard, the treatment of FILES was created on September 6, 2018, while the treatment of WASTE CARDS AND OTHER OPENING DEVICES was created on October 7, 2021.

The information contained in the General Register of Processing Activities related to these two treatments is attached as Annex 15."

It is certified that in the aforementioned Annex 15, the following information regarding the file named "Files" is recorded:

"- Activity of the processing: Management of files.

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- Purpose: To group all documentation related to the same matter, in relation to the activities inherent to or entrusted to the entity.
- Categories of interested parties: Users of SCPSA services
- Categories of data: Identifying. Commercial information. Transaction data.
- Transfers: Only those legally provided for.
- International transfers: Not provided for.
- Retention period: Data will be retained for the maximum period of limitation of legal actions from the completion of the service provision or from the request for data deletion by the interested parties, as applicable.
- Security measures: Access control. Backup copies. Malware protection. Updates. Network security. Mobile security. Remote access. Activity logging. Control of devices and installed software.

It is also certified that in the aforementioned annex 15, the following information regarding the file named "Waste Cards and Other Opening Devices" is included:

"- Activity of processing: Management of card issuance.

- Purpose: To manage the service of opening containers by means of an electronic card.
- Categories of interested parties: Users of SCPSA services



- Categories of data: Identifying. Transaction data.
- Transfers: Only those legally provided for.
- International transfers: Not provided for.
- Retention period: Data will be retained for the maximum period of limitation of legal actions from the completion of the service provision or from the request for data deletion by the interested parties, as applicable.
- Security measures: Access control. Backup copies. Malware protection. Updates. Network security. Mobile security. Remote access. Activity logging. Control of devices and installed software."

FOURTEENTH: On January 26, 2023, MCP sent the AEPD the Record of Processing Activities of SCPSA approved by the SCPSA Security Committee on November 23, 2018.

Regarding this record of processing activities, the following is certified:

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- That the responsible party for all the treatments contained in it is SCPSA, indicating the contact email as [sac@mcp.es](mailto:sac@mcp.es)
- That the data protection officer is Chaverri & Loitegui, Abogados Consultores, indicating the contact email as [chaverriloitegui@chyl.es](mailto:chaverriloitegui@chyl.es)
- That there is a processing activity called "Files," regarding which the following information is included:
  - Activity of processing: Management of files.
  - Purpose: To group all documentation related to the same matter, in relation to the activities inherent to or entrusted to the entity.
- Categories of interested parties: Users of SCPSA services
- Categories of data: Identifying. Commercial information. Transaction data.
- Transfers: Only those legally provided for.
- International transfers: Not provided for.
- Retention period: Data will be retained for the maximum period of limitation of legal actions from the completion of the service provision or from the request for data deletion by the interested parties, as applicable.
- Security measures: Access control. Backup copies. Malware protection. Updates. Network security. Mobile security. Remote access. Activity logging. Control of devices and installed software."

FIFTEENTH: On January 26, 2023, MCP sent the version of the Record of Processing Activities of SCPSA, following the expansion resulting from the sanctioning file initiated by the AEPD against MCP on November 14, 2019.

Regarding this record of processing activities, the following is certified:

- That the responsible party for all the treatments contained in it is SCPSA, indicating its registered office, CIF, and phone number.
- That the data protection officer is Chaverri & Loitegui, Abogados Consultores, indicating its postal address and the contact email as [protecciondatos@mcp.es](mailto:protecciondatos@mcp.es)
- That there is no processing activity called "Files."

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- That there is a processing operation called "Client Management. Waste Collection," regarding which the following information is provided:
  - Purposes of the processing: "Processing of personal data for contractual management, invoicing, and collection of waste collection services, processing of collection requests. Issuance of waste cards for

the opening of containers, whether newly created or replaced due to incidents with the previous card. Furthermore, it is intended for the purpose of managing special opening requests so that the user has a greater time range for the opening of containers."

- Categories of data subjects: "Citizens/Users. Representatives."

- Category of personal data:

"Identifying data: name and surname, ID number, digital certificate, signature.

Contact data: address, town, province, postal code, phone, email, fax.

Transaction data.

Economic and financial data: bank account number.

Others: ownership of assets, ownership of construction licenses, gender for communication purposes, and nationality."

- Category of recipients: "No data transfers are planned other than those legally provided."

- Retention periods: "Data will be retained for the maximum period of prescription of legal actions from the end of the service provision or from the request for data cancellation by the data subjects, as applicable."

- Transfers of data to a third country or international organization: "No data is transferred outside the European Economic Area."

- Technical and organizational measures: "Servicios de la Comarca de Pamplona, S.A., has adapted to the technical and organizational measures established in RD/3/2010 (National Security Scheme - ENS). In particular, the following measures are applied: Access control; Backup copies; Anti-malware protection; Updates; Network security; Security in mobility; Remote access; Activity logging; Control of devices and installed software."

- That there is a processing operation called "Client Management. Waste Treatment," regarding which the following information is provided:

- Purposes of the processing: "Processing of personal data for contractual management, invoicing, and collection of waste treatment and management services. Processing of identifying and contact data for the purpose of processing new waste cards, whether newly created or replaced due to incidents with the previous card. Furthermore, it is intended for the purpose of managing special opening requests so that the user has a greater time range for the opening of containers."

- Categories of data subjects: "Citizens/Users. Representatives."

- Category of personal data:

"Identifying data: name and surname, ID number, digital certificate, signature.

Contact data: address, town, province, postal code, phone, email, fax.

Economic and financial data: bank account number.

Others: environmental identification, ownership of assets, ownership of construction licenses, gender for communication purposes, and nationality."

- Category of recipients: "No data transfers are planned other than those legally provided."

- Retention periods: "Data will be retained for the maximum period of prescription of legal actions from the end of the service provision or from the request for data cancellation by the data subjects, as applicable."

- Transfers of data to a third country or international organization: "No data is transferred outside the European Economic Area."

- Technical and organizational measures: "Servicios de la Comarca de Pamplona, S.A., has adapted to the technical and organizational measures established in RD/3/2010 (National Security Scheme - ENS). In particular, the following measures are applied: Access control; Backup copies; Anti-malware protection; Updates; Network security; Security in mobility; Remote access; Activity logging; Control of devices and installed software."

SIXTEENTH: On January 26, 2023, MCP sent the Activity Register of the Treatment of SCPSA approved in the Security Committee of SCPSA dated February 23, 2022.

Regarding this activity register of the treatment, the following is accredited:

- That the responsible party for all the treatments contained in the aforementioned register is SCPSA, providing the contact email address [protecciondatos@mcp.es](mailto:protecciondatos@mcp.es).

- That the data protection officer is Chaverri & Loitegui, Lawyers, Consultants, providing the contact

email address [chaverriloitegui@chyl.es](mailto:chaverriloitegui@chyl.es).

- That there is a processing operation called "Files," regarding which the following information is provided:

- Activities of the processing: "Management of files."

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- Purposes of processing: "Processing of personal data associated with files, contentious resources, sanctioning procedures, and citizen attention. This includes matters related to the transparency portal."

- Categories of interested parties: "Citizens/Users, Suppliers, Representatives."

- Category of personal data: "Identifying data: Name and surname, ID number, digital certificate, signature. Contact data: address, city, province, postal code, phone, email, fax. Commercial information. Transaction data. Others: depending on the nature of the matter, economic data may be processed."

- Category of recipients: "The data will be communicated to lawyers and representatives for defense and representation in the entrusted matters, as well as, by legal obligation, to Courts and Tribunals, competent bodies, and, where applicable, Security Forces and Bodies."

- Retention periods: "The data will be retained for the maximum period of limitation of legal actions from the completion of the service provision or from the request for data cancellation by the interested parties, where applicable."

- Transfers of data to a third country or international organization: "WeTransfer is used for file sharing with the designated representative. The use of WeTransfer collects personal information and transfers it to the United States. Guarantees: section what parties do we share personal information with <https://wetransfer.com/legal/privacy>."

- Technical and organizational measures: "Access control. Backup copies. Anti-malware protection. Updates. Network security. Mobile security. Remote access. Activity logging. Control of devices and installed software."

- There is a processing activity called "Waste cards and other devices," regarding which the following information is provided:

- Activities of processing: "Management of container opening cards and mailboxes."

- Purposes of processing: "The data of the opening of containers and mailboxes by each of the cards or equivalent devices will be processed to analyze the use of containers and mailboxes and specifically to know the separation rates in order to achieve the applicable regulatory objectives, as well as to carry out promotional activities for the service and its results."

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- Categories of interested parties: "Citizens."

- Category of personal data: "Identifying. Transaction data."

- Category of recipients: "No data transfers are planned other than those legally provided."

- Retention periods: "The personal data collected will be retained for the time necessary to fulfill the purpose for which they were collected and to determine any possible liabilities that may arise from the purpose and its processing, in addition to the periods established in the archival and documentation regulations."

- Transfers of data to a third country or international organization: "No data is transferred outside the European Economic Area."

- Technical and organizational measures: "Access control. Backup copies. Anti-malware protection. Updates. Network security. Mobile security. Remote access. Activity logging. Control of devices and

installed software.”

SEVENTEENTH: It is certified that the company Auren conducted a report in 2021 analyzing the need for a Data Protection Impact Assessment regarding the personal data processing carried out by MCP as the data controller, by SCPSA as the data processor, and by MCP as the data controller, with SCPSA as the processor.

The report states that the processing activities for which MCP is the data controller and SCPSA is the processor are:

- Management of waste collection clients
- Management of clients related to waste processing
- Management of clients related to the Integral Water Cycle
- Management of urban transport services
- Management of taxi services
- Social rates

It is certified that the analysis of the need for a data protection impact assessment conducted by Auren indicates the following regarding the processing “Management of waste collection clients,” for which MCP is responsible:

“Purpose of processing: Processing of personal data for contractual management, billing, and collection of waste collection services, processing of collection requests.

Processing of identifying and contact data for the purpose of processing new waste cards, whether newly created or replaced due to issues with the previous card. It is also intended for the purpose of managing special opening requests so that the user has a broader time range for opening containers.”

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Regarding the type of personal data, identifying data, contact data, economic and financial data, and other data such as ownership of assets, ownership of work licenses, nationality, and sex for communication purposes are managed.

Concerning the volume of data, data from more than 250 interested parties are processed daily.

Although "on a large scale" is an indeterminate legal concept, the criteria established in the WP243 guide "Guidelines on Data Protection Officers (DPO)" of the Article 29 Working Party, as well as Recital 91 of the GDPR, have been considered. Based on the aforementioned criteria, the geographical scope of the processing is broad, as the Commonwealth of the Pamplona Region is made up of 50 municipalities and aims to provide public services to all citizens of those municipalities. Therefore, it can be concluded that it involves the use of data on a large scale; however, at least two criteria from the list of the Article 29 Working Party established in WP 248 or in the "Lists of types of data processing that require a data protection impact assessment (art.35.4)" of the AEPD are not present.

Lastly, based on the aforementioned issues regarding the purpose, type, and volume of personal data, it can be determined that the current processing is not encompassed in any of the cases established in Article 35.3 of the GDPR.

Therefore, taking into account the special risk assumptions of the LOPDGDD 3/2018 and based on the aforementioned criteria of the AEPD and the Article 29 Working Party, we can conclude that the processing does not pose a high risk to the rights and freedoms of individuals, and thus a data protection impact assessment for the processing "Customer Management Waste Collection" is not required.

It is certified that the necessity analysis for a data protection impact assessment conducted by Auren indicates the following regarding the processing "Customer Management related to waste processing," for which MCP is responsible:

"Purpose of the processing: Processing of personal data for contractual management, billing, and collection of waste treatment and management services. Processing of identifying and contact data for the purpose of processing new waste cards, whether newly created or as a replacement due to

incidents with the previous card. Additionally, it is intended for the purpose of managing special opening requests so that the user has a broader time range for opening containers.

Regarding the type of personal data, identifying data, contact data, economic and financial data, and other data such as environmental identification, ownership of work licenses, sex for communication purposes, and nationality are managed.

Concerning the volume of data, data from more than 250 interested parties are processed daily. Additionally, there is an approximate volume of 30,000 contracts.

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The special risk scenarios of the LOPDGDD 3/2018 have been analyzed and, taking into account the considerations of the Spanish Agency for Data Protection (AEPD) and the Article 29 Working Party regarding the cases in which a DPIA is required, the following conclusions are reached:

While "on a large scale" is an indeterminate legal concept, the criteria established in the WP243 guidelines "Guidelines on Data Protection Officers (DPO)" of the Article 29 Working Party, as well as Recital 91 of the GDPR, have been considered. Based on the aforementioned criteria, the geographical scope of the processing is broad, as the Commonwealth of the Pamplona Region is made up of 50 municipalities and aims to provide public services to all citizens of those municipalities. Therefore, it can be concluded that it involves the use of data on a large scale; however, at least two criteria from the list of the Article 29 Working Party established in WP 248 or in the "Lists of types of data processing that require data protection impact assessment (art.35.4)" of the AEPD are not present.

Finally, based on the aforementioned issues regarding the purpose, type, and volume of personal data, it can be determined that the present processing does not fall under any of the scenarios established in Article 35.3 of the GDPR.

Therefore, we can conclude that the processing does not pose a high risk to the rights and freedoms of individuals, and thus a data protection impact assessment is not required for the processing "Customer Management Waste Treatment."

EIGHTEENTH: It is certified that MCP carried out, on June 20, 2023, a data protection impact assessment report for the project "Waste Card and Other Devices."

In such DPIA:

- It is indicated, within the phases of processing that "The purpose is to analyze the use of containers and mailboxes and specifically to know the separation rates in order to achieve the applicable regulatory objectives, as well as to carry out promotional activities for the service and its results."

- It is noted, regarding the legitimacy of the processing, the following:

Control: "Analyze the use of containers and mailboxes and specifically to know the separation rates in order to achieve the applicable regulatory objectives, as well as to carry out promotional activities for the service and its results."

Legal basis: "Compliance with a mission carried out in the public interest or in the exercise of public powers."

Justification: "Public mission or exercise of public powers attributed by Law 7/1985, of April 2, regulating the Bases of the Local Regime, Law 7/2022, of April 8, on waste and contaminated soils for a circular economy, Foral Law 14/2018, of June 18, on Waste and its Taxation, and Directive (EU) 2018/851 of the European Parliament and of the Council, of May 30, 2018, amending Directive 2008/98/EC on waste."

- It states, regarding the justification of the necessity and proportionality of the processing, the following:

"The data will only be used for the declared purpose that is recorded in the activity register of the processing."

"The minimum necessary data for the intended purpose is collected."

"It is considered that the technology used is the most appropriate to fulfill the declared purpose, also

complying with the fundamental principles of privacy."

"Personal data is retained only for the periods necessary to fulfill the declared purpose."

NINETEENTH: It is certified that the respondent carried out a campaign in April 2023 targeting establishments with zero openings.

The report prepared by the respondent indicates that the campaign consisted of visiting 270 establishments where, despite not having registered openings, it was detected that there was water consumption, and therefore it could be inferred that they were conducting their commercial activity.

The objectives of this action plan are:

"- Detect whether the establishments in the area have the opening cards for the containers assigned to their postal address.

- Investigate the reasons for the non-opening of the containers.

- Inform about the obligation to separate and deposit waste in fractions, as well as warn about possible sanctions.

- Inform about how to properly separate waste at the source and its subsequent deposit.

- Identify and gather needs regarding difficulties in depositing waste (overflowing containers, improving accessibility, unavailability of cards and/or credentials, etc.).

- Reduce or eradicate the abandonment of waste and bulky items outside containers and mailboxes by the target establishments.

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- Inform about the steps to take to request opening cards in case of loss or breakage."

TWENTIETH: On the date of entry in the AEPD registry of July 3, 2023, the respondent submitted a written statement of allegations to the proposed resolution in which it states, on pages 26 and 27, the following:

"To manage new cards -a treatment different and independent from the subject of the complaint- the Consortium is conducting a risk analysis to assess whether there is a high risk to the fundamental right to data protection of the interested parties when processing such data when requesting renewal, and if our DPO ultimately concludes in the Report that is being prepared -a Report that we have not been able to include due to lack of time but which will be ready next week and in which, in a preliminary approach, points to current compliance with the regulations given the data collected and the purpose of the processing- that the processing of personal data we carry out for the request for new cards does not comply with the principle of minimization, we will immediately contact all affected interested parties to proactively inform them that the Consortium has proceeded to limit the processing of such data and, in compliance with the principles of transparency, legality, and fairness, as well as minimization, an urgent notification will be sent informing of the change."

TWENTY-FIRST: On the date of entry in the AEPD registry of July 14, 2023, the respondent submitted a written statement in which it states that "it attaches, as a complement to the allegations presented on July 3 (...), the risk analysis document referred to on page 26 of said allegations."

The document, signed by Chaverri & Loitegui, Lawyers | Consultants on July 13, 2023, is titled "risk analysis."

The processing of personal data on which such a risk analysis is made is the so-called "Processing 4: files," regarding which the following is stated in relation to the "Structure of the processing":

"Purposes

Accounting, tax, and administrative management

Legal services (lawyers, solicitors, social graduates, economists, consultants, etc.)

Tax management, inspection, and collection.

Management of citizen requests

Source and origin of the data

The same interested party or their legal representative

Public records

Public administrations  
Groups or categories of interested parties  
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Clients and users

Applicants

Citizens and residents

Identifying data

DNI or NIF

First and last names

Postal or electronic address

Phone

Voice

Manual signature

Other typified data

Personal characteristics

Academic and professional

Economic, financial, and insurance

Administrative infringements

Processing system

Mixed

Categories of recipients of transfers

Organizations or persons directly related to the controller

Judicial bodies

Tax administration

Public administration with competence in the matter”

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

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II

Article 4 of the GDPR, under the heading "Definitions," states:

“For the purposes of this Regulation, the following definitions shall apply:

- 1) ‘personal data’: any information relating to an identified or identifiable natural person (‘the data subject’); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;
- 2) ‘processing’: any operation or set of operations performed on personal data or sets of personal data,

whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction;”

The present file is analyzing the implementation of a system for opening waste containers equipped with electronic locks corresponding to Access Control Equipment (ECA) for such containers, activated by a card linked to a specific postal address, a transport card activated for the opening of containers, or a mobile application linked to a specific postal address.

The data of the postal address was initially extracted from the Territorial Wealth Registry of Navarra, regulated by Foral Law 12/2006, of November 21, on the Registry of Territorial Wealth and the Cadastres of Navarra, stating in its article 2 that “it is an administrative registry dependent on the Tax Administration of Navarra, which constitutes a permanent and updated inventory of the real estate located in the territory of Navarra.”

Article 3.2 of the aforementioned Foral Law 12/2006, of November 21, regarding the content of the Territorial Wealth Registry of Navarra, states that “The real estate referred to in article 13 of this Foral Law shall be characterized by a set of data necessary for its location, unequivocal description, valuation, and indication of its ownership, which shall be considered basic data.” (the underlining is ours).

And since it is the Territorial Wealth Registry of Navarra that serves as the basis for determining the payment of non-tax public property benefits—condition attributed to the fees for the provision of urban waste management services—through the postal addresses, the natural persons who are, where applicable, obliged to make such payment can be identified, and who, for any reason, inhabit, occupy, or enjoy the homes, premises, establishments, or centers for whose benefit or advantage this general and mandatory service is provided or made available, with the possibility of even identifying the natural persons.

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owners of the properties who are obliged to make such payment when the beneficiaries of the service are not known.

Furthermore, “The municipal register is the administrative record where the residents of a municipality are recorded. Its data constitutes proof of residence in the municipality and of the habitual domicile therein.” (Article 16.1 of Law 7/1985, of April 2, regulating the Bases of the Local Regime, hereinafter LBRL).

Given that “Every person living in Spain is obliged to register in the register of the municipality in which they habitually reside” (Article 54.1 of Decree 1690/1986, of July 11, which approves the Regulation of Population and Territorial Demarcation of Local Entities), and that associations of municipalities are local associative entities (Article 3.2.c) and 44 of the LBRL), composed of Town Halls that manage the municipal register (Article 17 of the LBRL), through postal addresses they can identify all the people registered therein.

The fact is that from the address of a resident's habitual domicile, the Town Halls can obtain more data about them that is recorded in the municipal register. The identification does not have to be direct or complete; an indirect identification that makes a person identifiable in any way is sufficient.

However, the above is criticized by the party being claimed in their written allegations to the proposed resolution, as they understand that “the postal address data does not have to - unequivocally, accurately, and completely - lead to identifying the person who carries out the waste recycling task since only with the postal address data it is not possible to identify who went to the container” and that “identification based solely on the postal address could lead to incorrect identification (or, better said, to not identifying at all).”

In this regard, it should be noted that it is not being discussed whether it is possible to identify who goes to or throws garbage into the container, but rather that through the ownership of the property recorded in the Territorial Wealth Register of Navarra, data from which the card for opening waste



containers is issued, it is possible to perfectly identify the individuals who inhabit a certain domicile. And all this is in consideration of the data from the register.

Moreover, the party being claimed forgets that for a person to be identifiable, it is not necessary for all the information that allows identifying the interested party to be held by a single person. In this regard, the Judgment of the CJEU of October 19, 2016, in case C-582/14, in the proceedings between Patrick Breyer and Bundesrepublik Deutschland, states that "for a data to be classified as 'personal data', in the sense of Article 2, letter a), of that Directive, it is not necessary for all the information that allows identifying the interested party to be held by a single person." (the emphasis is ours).

It should be emphasized that when the card or the mobile application for the electronic opening of waste containers is used, the following information is recorded in the lock provider's system: The identifier of the card used to open the container (which is linked to a postal address), the date and time when...

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the container has been opened, the container identifier, the type of container used (organic or residual), and the location of the container (GPS coordinates). Therefore, we must cite the Judgment of the Supreme Court 1062/2019, of July 12 (rec. 4980/2018), which states that "Individualized electricity consumption data with hourly breakdown allows those who have access to that information and link it to the identity of the supply contract holder to know the private behavioral habits of that consumer, such as ordinary times of entering and leaving the home, the time at which they go to sleep, the time zones in which there is more activity in the home or business premises, the level of electrification, the use of refrigeration or heating devices, even whether they live alone or not, among others. Ultimately, it provides objective information that affects the private sphere of each consumer and can provide guidelines for the daily behavior of a person" (the emphasis is ours). Concluding the aforementioned judgment that "Therefore, we consider that the measurements related to the individual consumption of electricity associated with each supply point and its code, which the distribution companies are obliged to send to the system operator, as they contain information concerning the behavioral habits of an identifiable natural person, are personal data" (the emphasis is ours).

However, the responding party, in its written allegations to the proposed resolution, considers that the processing of personal data it carries out does not allow for the knowledge of the habits of any person "since not knowing who performs it on each occasion (one day it may be the homeowner, another day it may be the cleaning person, etc.) it would not be correct to speak of habits since they do not even correspond to the same identified person and, in reality, habits are associated with individuals."

In this regard, it is necessary to bring up the Opinion of the Catalan Data Protection Authority CNS 60/2021, which states that "The fact that waste is deposited in a way that allows for the identification of its origin entails an undeniable impact on the protection of personal data and the privacy of individuals (...)." A risk that clearly increases in cases where its origin can be easily determined (for example, in the case of single-family homes).

Therefore, it is not in vain that the responding party, when distributing the cards linked to the postal address for the opening of waste containers equipped with electronic locks, attached a letter indicating that "As it concerns data, sometimes related to an identified or identifiable natural person, the information obtained regarding the opening of containers will be processed in accordance with personal data protection regulations."

On the other hand, we cannot forget that, although the electronic cards for opening waste containers were initially mailed, subsequently individuals have been able to: Request a new card (in cases of loss, malfunction, breakage, change of address), request the activation of the transport card for the opening of waste containers, request credentials to activate the mobile application for opening waste containers.

In these cases, in addition to processing the personal data of the postal address, which  
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Initially extracted from the Territorial Wealth Register of Navarra, new personal data derived from the collection and registration of application submissions have been processed, as follows:

- In online applications for new cards, the following data must be completed: ID number, first name and last name, email address, phone number (optional), and postal address.
- In in-person applications for new cards, the following data must be completed: ID number, first name and last name, signature, email address, phone number, and postal address.
- In online applications for the activation of the transport card for the opening of waste containers, the following data must be completed: ID number, first name and last name, email address, postal address, phone number (optional), and transport card ID (optional).
- In in-person applications for the activation of the transport card for the opening of waste containers, the following data must be completed: ID number, first name and last name, signature, transport card ID, postal address, phone number, and email address.
- In online applications related to the mobile application (new user, remember user, remember password, or incidents), the following data must be completed: ID number, first name and last name, email, phone number (optional), and postal address.
- In in-person applications related to the mobile application (new user, remember user, remember password, or incidents), the following data must be completed: ID number, first name and last name, signature, postal address, phone number, and email address.

In summary, the implementation of a system for opening waste containers equipped with electronic locks corresponding to Access Control Equipment (ECA) for such containers, activated by a card linked to a specific postal address, an activated transport card for the opening of containers, or a mobile application linked to a specific postal address, constitutes, in accordance with the definitions of Article 4 of the GDPR, the processing of a set of personal data, as indicated:

1.- Both in the additional information on data protection for the processing "WASTE CARD FILE" dated October 15, 2021 (which the responding party indicated was published in their document of January 24, 2022), which states that the types of data processed are:

“- Identifying and contact data: Name, last name, associated postal address, email address, and phone number

- Transaction data: Usage data of the electronic opening devices linked to the postal address”

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2.- As in the additional information on data protection for the processing "WASTE CARD FILE" that was published on April 25, 2022 (diligenced by the AEPD Inspection on June 13, 2022), which states that the types of data processed are:

“Identifying and contact data: Name and last name, associated postal address.

Transaction data: Usage data of the cards linked to the postal address.”

III

Article 4 of the GDPR also defines what is understood, for the purposes of this Regulation, by:

- “«data controller» or «controller»: the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of the processing, the controller or the specific criteria for its appointment may be established by the law of the Union or of the Member States;”

- “«processor» or «processor»: the natural or legal person, public authority, service, or other body that processes personal data on behalf of the controller.”

Articles 1 and 2 of the Regulation of the Pamplona Region Commonwealth / Services of the Pamplona Region state:

“Article 1. Services.

1. The Commonwealth holds ownership of the services that constitute its object, as set forth in Articles 5 and 6 of its Statutes.
2. “Services of the Pamplona Region, S.A.” will provide the services referred to in the previous paragraph, in accordance with the agreements of the General Assembly.

Article 2. Competences.

1. The Commonwealth is responsible for the functions of high management, inspection, and control of the activity of the Society in the terms established for each case, in this Regulation.

(...)”

For its part, Article 5.1.b) of the MCP Statutes establishes that “The object of the Commonwealth is the exercise of the competences, legally established and within the territorial scope defined in the following article, in the following matters whose ownership corresponds to it:

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b) Collection, treatment, and utilization of urban waste.”

Furthermore, the Regulatory Ordinance for waste management in the MCP, modified on October 25, 2021 (Official Bulletin of Navarra No. 259, of November 12), states the following in its first three articles:

“Article 1. COMPETENT ENTITY. The Mancomunidad of the Pamplona Region (hereinafter referred to as the Mancomunidad) is a local entity of an associative nature, whose purposes include the provision of waste collection and treatment services, in accordance with the terms of the local entities or areas of action in which, at any given time, the Mancomunidad holds ownership of the aforementioned service, with the aim of protecting the environment and the health of individuals.

Article 2. LOCAL COMPETENCIES. The Mancomunidad is competent for the collection, transportation, and treatment of domestic waste generated and deposited within its jurisdiction in the manner established in this ordinance and in accordance with the provisions of waste legislation and local regime legislation.

(...)”

The Mancomunidad may:

- Approve, within the framework of its competencies and in coordination with the national framework plan and with the regional waste management plans, its own waste management program and/or its waste prevention program. If applicable, the waste management plan may include the waste prevention program.

(...)”

Article 3. METHOD OF SERVICE MANAGEMENT. The Mancomunidad manages the services referred to in the previous article through a management company, Servicios de la Comarca de Pamplona, S.A. (SCPSA), established for this purpose, in accordance with the provisions of the current regulations on the provision of local services.”

Therefore, it is the MCP that has the competence to provide the services of collection, treatment, and utilization of urban waste in the Mancomunidad, and thus determines the objectives and means of how to carry out such provision, making it responsible for the processing of personal data subject to this procedure, as it has acknowledged in its written allegations to the initiation agreement.

Meanwhile, SCPSA, since it manages the services of MCP in accordance with the agreements of its General Assembly, and therefore processes the data on behalf of MCP, is responsible for the processing of the personal data subject to this procedure.

IV

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The party being claimed, both in its written allegations to the initiation agreement and in its written allegations to the proposed resolution, refers to different purposes of processing that, in its opinion, would legitimize it. Therefore, it is appropriate to study them individually:

1.- The achievement of the objectives of waste separation at source established by the regulations. The claimed party states in its written allegations to the initiation agreement that “in the exercise of its competencies for the collection, transportation, and treatment of domestic waste, it carries out the processing of personal data through the implementation of smart containers, which is necessary for the fulfillment of a mission of public interest and in the exercise of public powers conferred by the legal system,” subsequently indicating that with the implementation of such a system “it only aims to comply with and enforce clear objectives of separate collection and avoidance of improper waste,” which, it states, derive from the following regulations:

- Directive 2018/851 of the Council and the Parliament, which amends Directive 2008/98/EC on waste.
- Foral Law 14/2018, on waste and its taxation.
- Law 7/2022, on waste and contaminated soils for a circular economy (hereinafter, LRSCEC).

Regulations to which it adds, in its written allegations to the proposed resolution, the following:

- Four fundamental principles that the European Union has indicated regarding waste management: The principle of prevention, the principle of “the polluter pays,” the preventive principle, and the principle of proximity.
- The State Framework Plan for waste management 2016-2022.
- Law 22/2011, of July 28, on waste and contaminated soils.

It should be emphasized, first of all, that the LRSCEC came into force on April 10, 2022, with Law 22/2011, of July 28, on waste and contaminated soils being the regulation in force when the system for opening containers subject to this sanctioning procedure began to be implemented.

As reflected in the Legal Basis IV of the initiation agreement, Article 8 of the LOPDGDD states:

“1. The processing of personal data may only be considered lawful if it is necessary for compliance with a legal obligation to which the controller is subject, in the terms provided in Article 6.1.c) of Regulation (EU) 2016/679, when such is provided for by a Union law or a law of equivalent rank, which may determine

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the general conditions of processing and the types of data subject to it, as well as the transfers that may arise as a consequence of compliance with the legal obligation. This regulation may also impose special conditions on the processing, such as the adoption of additional security measures or others established in Chapter IV of Regulation (EU) 2016/679.

2. The processing of personal data may only be considered based on the fulfillment of a mission carried out in the public interest or in the exercise of public powers conferred to the controller, as provided in Article 6.1.e) of Regulation (EU) 2016/679, when it derives from a competence attributed by a norm with the rank of law.”

In the present case, as will be developed in Legal Basis X of this resolution, the processing cannot be considered based on the fulfillment of a legal obligation enforceable against the data controller because neither the aforementioned Law 22/2011, of July 28, on waste and contaminated soils, nor any of the other norms invoked by the responding party, obliges or legitimates it to carry out any processing of personal data to exercise its competencies in the collection, transport, and treatment of domestic waste.

The above is criticized by the responding party in its written allegations to the proposed resolution, as it considers that it does “legitimize it considering that the objectives are initially set by Europe, by the

Constitution itself which empowers the Commonwealth to develop its competencies, and by the regional and national laws.”

Such a statement reveals that the responding party is confusing the obligation it has to achieve certain recycling objectives at source with the alleged obligation to carry out personal data processing to achieve such objectives. These are two distinct matters. And this latter “obligation” is not included in any of the invoked norms.

To this end, let us bring to attention Opinion 06/2014, on the concept of legitimate interest of the data controller under Article 7 of Directive 95/46/EC, which establishes that “the legal obligation itself must be sufficiently clear regarding the processing of the personal data required. Therefore, Article 7, letter c) (transferable to the current Article 6.1.c) of the GDPR), is applicable based on the legal provisions that explicitly refer to the nature and purpose of the processing. The data controller must not have an undue degree of discretion regarding how to comply with that legal obligation.”

On the other hand, the processing cannot be considered based on a mission carried out in the public interest or in the exercise of public powers conferred to the controller because for the achievement of the objectives of separate collection and avoidance of improper waste, the regulations do not provide for or consider the processing of personal data nor, therefore, the postal address data as well as all other data required in cases of application for a new card, activation of the transport card for opening waste containers, and for requesting credentials to activate the mobile application for opening containers.

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waste (DNI, name and surname, signature, email address, phone number, and postal address).

Article 17.2 of Law 22/2011, of July 28, on waste and contaminated soils (the regulation in force at the time the claim was filed) states that “The delivery of domestic waste shall be carried out under the terms established by local ordinances.”

Meanwhile, Article 20.3 of the LRSCEC (currently in force) establishes that “The initial producer or other holder of domestic waste must separate their waste at source and deliver it under the terms established in the ordinances of local entities, in accordance with the provisions of Article 25.”

If we refer to the Regulatory Ordinance on waste management of MCP, we will find that Articles 15 and 16 establish the following:

“Article 15. OBJECTIVES. Both Law 22/2011, of July 28, on waste and contaminated soils, and the Navarra Waste Plan 2017-2027 and the Foral Law 14/2018 on waste and its taxation, establish objectives for reuse, recycling, and other forms of waste recovery, with the aim of protecting the environment and the health of individuals.

To this end, the Commonwealth has a collection system, which entails the obligation of users to deposit separately those waste materials suitable for different uses, or whose specific collection is deemed appropriate.

For the proper management of waste, its reuse, and recycling, the Commonwealth establishes in this Ordinance the necessary measures with the aim of increasing source separation and optimizing the collection service.

Article 16. OPENING THROUGH CONTAINER AND MAILBOX OPENING DEVICE In order to achieve the objectives set out in Article 15 of this ordinance, systems for opening containers and mailboxes will be progressively installed, through opening devices that will allow for the capture and registration of data from each container and/or mailbox in order to know their degree of utilization to achieve the regulatory objectives, as well as for the promotion of the service and its results.”

From the reading of the above, it follows that the ordinance refers to the collection of data from the containers in order to know their degree of utilization to achieve the regulatory objectives, as well as for the promotion of the service and its results. It makes no mention of the collection of personal data, so the claimed party cannot carry out any processing of personal data nor, therefore, know the exact postal address of those who make each waste deposit, since, as indicated, the aforementioned

ordinance does not contemplate the collection of personal data for the use made of the different containers by each household.

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However, the responding party, in its written allegations to the proposed resolution, states that, although the treatment of postal addresses cannot be considered essential, “it is indeed highly convenient and entirely appropriate” for the execution of the mission in the public interest in light of the results of recycling objectives.

Therefore, it expresses “its total commitment” to modify the Regulatory Ordinance on waste management to explicitly include “the collection of data on the use made of the different containers by each postal address,” although it considers that such omission “does not imply that it cannot be done since the collection of data is not so much the objective but a means to achieve the objective, which is to meet the recycling goals.”

We must emphasize, beforehand, that while in the private sphere one can do anything that is not prohibited, in the public sphere only that which is permitted by the legal system can be carried out; this implies that public administrations can only do what the legal system expressly allows them to do, and they cannot rely, under the pretext of the silence of the norm, on the notion that something can be done because nothing in the regulatory provision indicates otherwise.

As indicated in report 2018-0175 from the Legal Cabinet of the AEPD 175/2018, “the Administration is bound by the principle of legality, so that, unlike individuals, it can only carry out what the legal system expressly permits. This is the meaning of the provisions in articles 9.1 and 103 of the Constitution, such that when the law and the rights have not attributed to the Administration the corresponding powers to act in a certain situation, that action cannot be carried out without prior attribution of such powers by the legal system. Therefore, there is no empty space where, in the absence of law, the Administration can act. This is what has been termed the doctrine of the positive binding of the Administration to legality (García de Enterría). Consequently, for the Administration to act, it requires prior legal authorization (understood here as normative authorization).”

In the present case, the norm does not foresee the treatment of any personal data, which the responding party labels as an omission. However, as we have made explicit, MPC can only do what the ordinance allows it to do, and the “omission” of the regulator cannot be supplanted by the mere will of MPC.

Article 6.3 of the GDPR states that the basis for the processing indicated in article 6.1.e) of the GDPR must be established by Union law or by the law of the Member States applicable to the data controller, with the purpose of the processing needing to be determined in that legal basis.

On the other hand, the aforementioned article 6.3 of the GDPR indicates that “This legal basis may contain specific provisions to adapt the application of rules to this Regulation (...)” (the underlining is ours)

The above means, in relation to the basis of legitimacy regulated in article 6.1.e) of the GDPR:

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- That the purpose of the processing must be determined by a regulation with the rank of law, as established by Article 8 of the LOPDGDD.

- That other specific provisions regarding data protection may be determined in such regulation with the rank of law, although it is not mandatory.

In the area of waste management, the aforementioned state legislation on environmental matters has established that local entities must meet objectives regarding the separation at source of waste, while

allowing them to determine the means to achieve this, means that must be specified and detailed in the corresponding local ordinances. That is, the Law only determines the ends, enabling local entities, through ordinances (the last level of regulatory specification), to determine the means. In this case, the ordinance should have necessarily included the processing of personal data and not just the processing of data from the containers.

This implies, in the examined case, that although there is a prior legal authorization, this Law expressly enables a lower-ranking legal norm to contain specific provisions developing the competence conferred by the Law. Such specification, which must be found, in this case, in a local ordinance, should have been carried out by the regulator in whatever manner it deemed appropriate, including or not including data protection issues, in which case it would be under the terms of Article 6.3 of the GDPR. As can be seen, in the case examined in the present sanctioning procedure, the regulator has not provided for any processing of personal data as authorized by Article 17.2 of Law 22/2011, of July 28, and currently authorized by Article 20.3 of the LRSCEC.

Furthermore, such determination of the means cannot be carried out in any manner regarding data protection, but rather with similar requirements to those provided in Article 6.3 of the GDPR for the Law, as it is an extension of it. The ordinance being the last normative specification instrument in which all means must be provided, including for these purposes the processing of personal data (by virtue of Article 6.3 of the GDPR and Article 5.1.a) of the principle of lawfulness, fairness, and transparency of the GDPR), MCP is bound to its strict content. The Regulatory Ordinance for Waste Management of MCP only contemplates the collection of data from the containers. It does not contemplate the collection of personal data. It does not contemplate the collection of data on the use made of the different containers by each household. No processing of personal data is provided for in the ordinance of MCP. Therefore, as we have pointed out previously, it cannot carry out what MCP itself has not normatively provided regarding the processing of personal data.

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Furthermore, let us remember that Article 70.2 of the LBRL establishes that “The ordinances, (...) shall be published in the 'Official Bulletin' of the Province.” It is through such publication that citizens, the ultimate recipients of the norm, become aware of its full content. And in the case at hand, to know whether the local entity processes their personal data and for what purpose.

Recital 39 of the GDPR states that “All processing of personal data must be lawful and fair. For natural persons, it must be entirely clear that personal data concerning them is being collected, used, consulted, or otherwise processed, as well as the extent to which such data is or will be processed. The principle of transparency requires that all information and communication regarding the processing of such data be easily accessible and easy to understand, and that plain and clear language be used. This principle specifically refers to the information provided to data subjects about the identity of the data controller and the purposes of the processing, as well as additional information to ensure fair and transparent processing with respect to the affected natural persons and their right to obtain confirmation and communication of the personal data concerning them that is subject to processing. Natural persons must be aware of the risks, rules, safeguards, and rights related to the processing of personal data, as well as how to exercise their rights in relation to the processing. In particular, the specific purposes of the processing of personal data must be explicit and legitimate, and must be determined at the time of collection. (...)” (the emphasis is ours).

For its part, the Judgment of the Constitutional Court 292/2000, of November 30, states that “the content of the fundamental right to data protection consists of a power of disposition and control over personal data that empowers the individual to decide which of those data to provide to a third party, whether the State or a private individual, or which data this third party may collect, and it also allows the individual to know who holds that personal data and for what purpose, being able to oppose such

possession or use. These powers of disposition and control over personal data, which are part of the content of the fundamental right to data protection, are legally specified in the ability to consent to the collection, obtaining, and access to personal data, its subsequent storage and processing, as well as its possible use or uses, by a third party, whether the State or a private individual. And this right to consent to the knowledge and processing, whether computerized or not, of personal data requires as indispensable complements, on the one hand, the ability to know at all times who has that personal data and to what use it is being subjected, and, on the other hand, the power to oppose such possession and uses.” (the emphasis is ours).

Therefore, when the responding party states that the omission of “the collection of data on the use made of the different containers by each postal address” in its ordinance “does not imply that it cannot be done since the collection of data is not so much the objective but a means to achieve the objective of achieving recycling goals,” it is showing a clear disregard for the fundamental right to the protection of personal data, and specifically, for the principle of lawfulness, fairness, and transparency of the processing of personal data regulated in Article 5.1.a) of the GDPR.

Despite the above, the responding party, in its written allegations to the initiation agreement, does not agree that the processing is not lawful and necessary based on what

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establishes the last paragraph of Article 25.2 of the LRSCEC, which states explicitly:

that “Among the collection models for the previous fractions established by local entities, the most efficient collection models should be prioritized, such as door-to-door collection or the use of closed or smart containers that guarantee similar collection ratios.”

While it has already been indicated previously that the LRSCEC was not in force at the time the implementation of the system for opening containers using an electronic card or mobile application linked to a postal address began, in the explanatory memorandum of such law we will find that it states that “The law does not determine a single modality for carrying out the aforementioned separate collections of the different fractions of waste under local competence, and these must adapt to the circumstances of each local entity, taking into account proven successful models, such as door-to-door collection or with closed containers.” (the underlining is ours).

That is, the law intends for efficient models of source separation of waste to be established, but this does not mean, contrary to what the responding party understands, that the door-to-door system or the closed container system must be implemented mandatorily. And it certainly does not mean that the regulation requires that the opening of the containers must be accompanied by the processing of personal data and, specifically and for the case examined, that it must be linked to a personal data such as the postal address.

After all, the fifteenth additional provision of the LRSCEC, “Protection of personal data,” establishes that “In all actions regulated by this law, and specifically in waste management, in the reuse of products or components of products that contain personal data or in the transfer of waste, this law will apply without prejudice to Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights; to Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, regarding the protection of natural persons with regard to the processing of personal data and the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) and other applicable regulations in the matter.” (the underlining is ours).

On the other hand, the responding party states in its written allegations to the initiation agreement that between 2013 and 2015 it implemented a system of “closed containers, without identification of the waste generator/producer through the placement of the 5th Container for Organic Matter, whose opening was carried out with a mechanical key.

(...)

The general implementation experience of closed containers without identification was not successful at all, therefore falling far short of being able to meet at any time collection ratios similar to door-to-door collection or to meet the quantitative requirements and high-quality recycling and the objectives established in the LRSCEC.”

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Subsequently noting that "without the necessary limited processing of personal data required by the separate collection through smart containers referred to by the Law itself, it is impossible to fulfill the obligations and objectives established by it."

On the other hand, in its written allegations to the proposed resolution, the responding party indicates that it has analyzed four different formulas for waste separation at the source:

- Open containers on the street that do not require any mechanism for opening: They do not collect any personal information, but their efficiency in achieving waste separation at the source is low.
- Closed containers on the street that require the use of an opening mechanism, but do not allow for the recording of information regarding the openings made: It indicates that the level of use of personal information required is low, as is its efficiency in achieving waste separation.
- Closed containers on the street that require the use of an opening mechanism and allow for the recording of information regarding the openings made: It notes that the level of use of personal information is medium (postal address but without the possibility of identifying the deposited waste), while the level of efficiency in achieving waste separation at the source is medium-high.
- Door-to-door collection, that is, waste collection at the door of each home and establishment: The level of use of personal information is high, as it allows for the identification of both the contributor and the deposited waste, while the level of efficiency in achieving waste separation at the source is very high.

In light of the above, the responding party considers that the system it uses "is the intermediate formula that combines respect for the right to data protection of the interested parties and adequate efficiency - without using invasive methods that are, at the same time, much more efficient."

However, it is of no use to implement such a system if it does not find its legitimacy in any of the bases set out in Article 6.1 of the GDPR.

Furthermore, while it is true, as indicated by the responding party, that this system seems effective in achieving the objectives of waste separation at the source, it is not proven that such results are due to the processing of personal data, and much less, to the processing of the postal address data. By processing this data, the only thing known is whether a container is opened or not, but not whether waste has actually been deposited, and, in the event that it has been, it is unknown whether it has been placed in the corresponding container for the type of waste. Additionally, it is also unknown which individual has opened a container as well as what type of waste has been introduced, if applicable.

As has been stated, the processing of personal data subject to this sanctioning procedure:

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- It is not based on the fulfillment of a legally enforceable obligation of the data controller (Article 6.1.c of the GDPR) since there is no European Union law or law of equivalent rank that requires the processing of personal data to achieve the objectives of recycling at source.

- It cannot be considered based on the fulfillment of a mission carried out in the public interest or in the exercise of public powers conferred to the data controller (Article 6.1.e of the GDPR) since both Law 22/2011, of July 28, and the LRSCEC refer to the ordinances for determining the system for the delivery of domestic waste. The Regulatory Ordinance on Waste Management of MCP only contemplates the collection of data from containers in order to know their degree of utilization to achieve regulatory objectives, as well as for the promotion of the service and its results. It does not contemplate the collection of personal data for the use made of the different containers by each household, nor does it foresee the processing of such personal data, in this case, carried out by the responding party.

2.- The exercise of the sanctioning power.

The responding party states in its written allegations to the initiation agreement that the objectives of

selective collection "directly involve citizens, and therefore their citizenship, with even sanctioning consequences for them in case of non-compliance." To this end, it invokes Article 111.3 LRSCEC, which, as stated by the responding party, "not only empowers local entities to sanction the abandonment, dumping, or uncontrolled disposal of waste for which they are responsible for collection and management, but also the non-compliance with the delivery conditions provided in the ordinances, among which must be included, the non-compliance with the separation at source of waste."

Since it has already been indicated that the LRSCEC was not in force when the system for opening containers subject to this sanctioning procedure began to be implemented, we must refer to Law 22/2011, of July 28, on waste and contaminated soils.

This regulation in its Article 12.5 governs the competencies of local entities in waste management, indicating in letter b) that it corresponds to them "The exercise of the power of surveillance and inspection, and the sanctioning power within the scope of their competencies." This provision is practically identical to Article 12.5.d) of the LRSCEC ("Exercise the power of surveillance and inspection and the sanctioning power within the scope of their competencies").

This implies that the responding party, in the exercise of its sanctioning power, could be legitimized to carry out the processing of personal data, by virtue of Article 6.1.e) of the GDPR, as it is necessary for the fulfillment of a mission carried out in the public interest or in the exercise of public powers.

But in the present case, we find:

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- That the waste collection system implemented by the defendant does not allow for the identification of whether the citizen has deposited the waste in the appropriate container, therefore there would not be adequate and relevant data to comply with the principle of responsibility regulated in Article 28 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector.

- That in the additional information on data protection found on the website

[www.mcp.es/fichadatosresiduos](http://www.mcp.es/fichadatosresiduos), both in the version indicated by the defendant on January 24, 2021, which was published, and in the version documented by the AEPD Inspection on June 13, 2022, it is not stated in the section "What purpose do we process your data for?" that the data will be processed for the exercise of the sanctioning power. Furthermore, the defendant in its written allegations to the initiation agreement indicates that "There is no legal effect derived from the information obtained from the use of the cards."

From the above, it is deduced that, although the defendant has had, by virtue of Law 22/2011, of July 28, and has, by virtue of the LRSCEC, sanctioning competence in the area of waste management, it has not carried out, nor is it carrying out, data processing in relation to such competence, and therefore it cannot invoke it in order to justify the legitimacy of the processing of personal data that it has carried out, and continues to carry out, in relation to the exclusive purpose of the collection, transport, and treatment of domestic waste.

3.- The establishment of a fee that allows for the implementation of pay-as-you-throw systems.

The defendant states, in its written allegations to the initiation agreement, that Article 11.3 of the LRSCEC obliges local entities to establish, within three years from the entry into force of this law, a fee or public non-tax financial contribution, differentiated, that allows for the implementation of pay-as-you-throw systems. A fee that, the defendant indicates, is impossible if the "actual amount of waste generated/produced by each postal address of each fraction is not determined in a differentiated manner. This necessarily and inescapably requires the processing of data from the separated collection articulated through container systems, intelligent or door-to-door, since otherwise, it is materially impossible."

However, such a fee, which could legitimize the processing of personal data carried out by the defendant:

- Is regulated in a norm that was not in force at the initial moment of the implementation of the waste container opening system through electronic card or mobile application linked to the postal address.

In this regard, the defendant states in its written allegations to the resolution proposal that “before the 2022 law, objectives were also established and that the principle that ‘the polluter pays’; from which payment by generation derives, is a classic of environmental regulation and is not something that ‘appears or arises in 2022’. Therefore, the Commonwealth has limited itself to following the line set by Europe many years before.” Furthermore, the defendant indicates that such

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Initially, Law 22/2011, of July 28, on waste and contaminated soils already applied this principle by stating in its Article 11 that “In accordance with the principle that the polluter pays, the costs related to waste management shall be borne by the initial waste producer, the current holder, or the previous holder of the waste in accordance with the provisions established in Articles 42 and 45.2.”

However, the fact is that the responding party, under the provision it invokes, not only did not implement any fee at the initial moment of the establishment of the system for opening waste containers through an electronic card or mobile application linked to the postal address, but also had no intention of implementing it, since neither in the Regulatory Ordinance on waste management of MCP, nor in the additional information on data protection that appears on the website [www.mcp.es/fichadatosresiduos](http://www.mcp.es/fichadatosresiduos) (both in the version indicated by the responding party on January 24, 2021, which was published, and in the version certified by the AEPD Inspection on June 13, 2022), nor in any of the versions of the activity register of the treatment, has it been indicated that personal data will be processed for the purpose of establishing a fee.

- Furthermore, the fee regulated in the LRSCEC has still not been implemented, since the responding party in its written allegations to the initiation agreement states the following:

“when in the future it is intended to produce legal effects on users (payment by generation, for example), measures must be introduced that identify the user and guarantee the accuracy of the data. By way of example:

- regulatory modification.
- change of legal regime of the cards so that they are non-transferable.
- association of the card to the person obliged to pay the service.

Which will require informing users that the use of such cards will generate legal effects or significantly affect the person obliged to pay (...)”

Since the responding party, prior to the entry into force of the LRSCEC, has not carried out any data processing in relation to a fee based on the pay-as-you-throw waste generation system, nor has it implemented it after the entry into force of the aforementioned regulation, such invocation cannot be made in order to justify the legitimacy of the processing of personal data that it has carried out, and continues to carry out, in relation to the exclusive purpose of the collection, transport, and treatment of domestic waste.

4.- The exercise of the power of surveillance and inspection.

Finally, the responding party indicates in its written allegations to the proposed resolution, and for the first time during the processing of this sanctioning procedure, that the processing of personal data it carries out is legitimized by its competencies in the field of inspection, indicating that the results shown from the different waste collection systems derive “from the information generated in inspection and control tasks.”

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It also states that it has begun to “implement more precise inspection and control actions,” specifically:

- That it conducted an inspection campaign in April 2023 in those businesses and establishments that were not using the residual and organic waste containers.

- That it has planned an inspection action, based on the identification of residences and businesses with poor practices, in one of the neighborhoods with the worst results in waste separation and the highest abandonment of waste on the street.

Although there is no definition in the legal framework of what is to be understood by "administrative inspection," the doctrinal bulk defines it as "the activity of the Administration in which the conduct carried out by the administered is examined to verify compliance with the duties, prohibitions, and limitations to which they are subject and, if applicable, to prepare the administrative response to the transgressions detected."

For its part, the Royal Spanish Academy, in the "Panhispanic Dictionary of Legal Spanish," defines the "administrative inspection procedure" as "the special administrative procedure or the procedural specialties aimed at enabling the necessary procedures to allow for the investigation, verification, and eventual proposal of sanctions for activities subject to certain regulations whose non-compliance is sanctionable."

What has been stated implies that any inspection action is closely linked to the exercise, in the event of an infringement, of the sanctioning power. Therefore, the aforementioned article 12.5 of Law 22/2011, of July 28, on waste and contaminated soils, which regulates the competencies of local entities in waste management, indicates in letter b) that such entities are responsible for "The exercise of the power of surveillance and inspection, and the sanctioning power within the scope of their competencies." This provision is practically identical to article 12.5.d) of the LRSCEC ("Exercise the power of surveillance and inspection and the sanctioning power within the scope of their competencies").

And since we have already stated that:

- Although the responding party has had, by virtue of Law 22/2011, of July 28, and has, by virtue of the LRSCEC, sanctioning competence in waste management, it has not carried out, nor does it carry out, data processing in relation to such sanctioning competence, given that the waste collection system it has implemented does not allow for identifying whether the citizen has deposited the waste in the appropriate container.
- Since the inspection competence is linked to the exercise of the sanctioning competence, the responding party has also not been able to, nor can it carry out data processing in relation to the inspection competence.

The so-called "action campaign in establishments with zero openings," carried out by the responding party in April 2023, consisted, as indicated

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In the report submitted for this purpose, it was noted that 270 establishments were visited where, despite no openings being recorded, water consumption was detected, and therefore it could be inferred that they were conducting their commercial activity. In light of such findings, it is necessary to indicate that the responding party has cross-referenced the data from the waste container opening cards with the water consumption data, despite the fact that the responding party, in its written allegations regarding the initiation agreement, stated that the data from the waste container opening cards "is not related or used to segregate the information obtained from the subsequent use of that specific card for the opening of different devices." Furthermore, it stated that it did not create profiles. The report on the "action campaign in establishments with zero openings" indicates that the objectives of such a campaign were as follows:

- “- Detect whether the establishments in the area have the opening cards for the containers assigned to their postal address.
- Investigate the reasons for the non-opening of the containers.
- Inform about the obligation to separate and deposit waste in fractions, as well as warn about possible

sanctions.

- Inform on how to correctly separate waste at the source and its subsequent deposit.
- Identify and gather needs regarding difficulties in depositing waste (overflowing containers, improving accessibility, unavailability of cards and/or credentials, etc.).
- Reduce or eradicate the abandonment of waste and bulky items outside containers and mailboxes by the targeted establishments.
- Inform about the steps to take to request opening cards in case of loss or breakage.”

That is to say, the responding party has carried out an action in line with what is established in Article 16 of the Waste Regulatory Ordinance of MCP: “(...) systems for opening containers and mailboxes will be progressively installed, through opening devices that will allow for the capture and recording of data from each container and/or mailbox in order to know their degree of utilization to achieve regulatory objectives, as well as to carry out promotional activities for the service and its results.” (the underlining is ours). However, this action is not linked to the exercise of the sanctioning power in the event of regulatory infringement.

Furthermore, it should be emphasized that the aforementioned Article 16 of the Waste Management Regulatory Ordinance of MCP is consistent with the purposes of the processing of personal data that the responding party has stated in:

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- The informational letters attached to the cards linked to the postal address for the opening of waste containers equipped with electronic locks that have been distributed: “All data collected as a result of the use of these cards will be processed under the responsibility of Servicios de la Comarca de Pamplona, S.A. (SCPSA), to analyze the use of the containers for organic matter and residual waste, specifically to understand their level of use in order to achieve the applicable regulatory objectives, as well as to carry out information activities, promotion of the service, and its results” (the underlining is ours).
- The letter sent to the applicant for a new electronic card for the opening of the containers: “All data collected as a result of the use of these cards will be processed under the responsibility of Servicios de la Comarca de Pamplona, S.A. (SCPSA), to analyze the use of the containers for organic matter and residual waste, specifically to understand their level of use in order to achieve the applicable regulatory objectives, as well as to carry out information activities, promotion of the service, and its results.” (the underlining is ours).
- In the additional information on data protection found on the website [www.mcp.es/fichadatosresiduos](http://www.mcp.es/fichadatosresiduos) in the version indicated by the respondent on January 24, 2021, which was published: “The data on the opening of the containers and the organic matter and residual waste mailboxes and, where applicable, packaging obtained from each of the electronic opening devices enabled for this purpose will be processed to analyze the use of those containers and mailboxes and specifically to understand the separation rates in order to achieve the applicable regulatory objectives, as well as to carry out activities to promote the service and its results.” (The underlining is ours).
- In the additional information on data protection found on the website [www.mcp.es/fichadatosresiduos](http://www.mcp.es/fichadatosresiduos) in the version submitted by the AEPD Inspection on June 13, 2022: “The data on the opening of the containers by each of the cards will be processed to analyze the use of the containers for organic matter and residual waste and specifically to understand the separation rates in order to achieve the applicable regulatory objectives, as well as to carry out activities to promote the service and its results.” (The underlining is ours).
- In the treatment called “Waste Cards and Other Devices” of the Treatment Activities Register of SCPSA approved in the Security Committee of SCPSA dated February 23, 2022: “The data on the opening of the containers and mailboxes by each of the cards or equivalent devices will be processed to analyze the use of the containers and mailboxes and specifically to understand the separation rates in order to achieve the applicable regulatory objectives, as well as to carry out activities to promote the

service and its results.” (The underlining is ours).

- In the impact assessment regarding data protection for the project “Waste Card and Other Devices” dated June 20, 2023: “The purpose is to analyze the

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use of containers and mailboxes, specifically to understand the separation rates in order to achieve the applicable regulatory objectives, as well as to carry out promotional activities for the service and its results.” (The underlining is ours).

In conclusion, the processing of personal data carried out by the respondent party has been (i) for analysis and (ii) for promotional activities. But in no case has it been for the exercise of its inspection authority. To understand otherwise would imply that the respondent party would have a record of processing activities and an impact assessment that would not correspond to reality, in addition to not having adequately informed citizens about the purposes for which their personal data is being processed.

Based on the above, we can conclude that, at the time of filing the complaint with the AEPD:

1.- The processing of personal data carried out by the respondent party was not lawful solely for the achievement of the objectives of waste separation at source established by the regulations.

Furthermore, this system does not guarantee that waste segregation is done correctly, but only whether or not a particular container is used, which makes it difficult to contribute to achieving the pursued objectives.

2.- The respondent party was not carrying out data processing in relation to its inspection and sanctioning powers regarding waste management.

3.- Neither had a fee related to waste separation at source been implemented, nor had the LRSCEC come into force, so there was no obligation to implement the fee regulated in its article 11.3.

Moreover, the processing currently carried out by the respondent party is also not lawful, given that:

1.- The processing of personal data that the respondent party currently carries out is not lawful solely for the achievement of the objectives of waste separation at source, since it is not supported by any regulation as already argued.

2.- The respondent party still does not carry out data processing in relation to its inspection and sanctioning powers regarding waste management.

3.- The fee regulated in article 11.3 of the LRSCEC has still not been implemented, so it is also not currently carrying out data processing in relation to the management of a fee based on the pay-as-you-throw waste system.

Additionally, the implementation of this system does not guarantee the achievement of the objectives of waste separation at source established by the regulations. Furthermore, it would not allow for inspections, sanctions, or the implementation of a personalized waste fee based on the use of containers, given that the system, as indicated by the respondent party, does not allow knowing the waste that a specific person deposits in a particular container.

In conclusion, the processing of personal data carried out by the respondent party was not lawful at the time of filing the complaint that gave rise to the present sanctioning procedure, nor is it lawful currently, which constitutes a violation of article 6.1 of the GDPR.

V

The respondent party invokes, in its written allegations to the initiation agreement, various pronouncements from data protection control authorities that analyze the lawfulness of both the door-to-door system and that of smart containers. Let us now analyze them:

- Report 282/2018 from the Catalan Data Protection Authority: In this case, it was a door-to-door waste collection system whose data processing was required for “the identification of users, among other things, to control the service and resolve any incidents that may arise with the user of the service. That is to say, for the exercise of inspection powers related to waste collection (...).” An inspection purpose that the respondent party does not carry out.

- Report 6/2020 from the Catalan Data Protection Authority: In this case, the implementation of a selective waste collection system based on the use of containers that incorporate a radio frequency identification system was studied, with the ultimate goal of “computing the actual waste generation of each household or business and defining the amount of the fee based on the quantity and types of waste generated.” A fee that, in the case of the respondent party, is not implemented.
- Report 60/2021 from the Catalan Data Protection Authority: In this case, a door-to-door waste collection system was analyzed again with the ultimate goal of implementing a fee.
- Resolution of the rights protection procedure no. PT/72/2021 from the Catalan Data Protection Authority: In it, the alleged neglect of the right to deletion of personal data in relation to the door-to-door waste collection service was resolved. This resolution refers to report 248/2021, in which it is observed that the data processing is related both to the sanctioning power of the Administration and to the management of a fee for waste generation.
- Resolution of the rights protection procedure no. PT/76/2021 from the Catalan Data Protection Authority: In it, the alleged neglect of the rights of deletion and opposition to the processing of personal data in relation to the door-to-door waste collection service was resolved. A resolution that refers to the aforementioned report 248/2021.

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- The Opinion D18-015 of the Basque Data Protection Agency: In this case, the consulting association to the control authority proposed to request the corresponding municipalities “access to the personal data contained in the municipal register of the urban waste fee, consisting of the name and surname of the user, address, and D.N.I. in order to manage the opening cards for the urban waste containers, control the use of the containers by users, and apply the legally established sanctioning regime in the event of non-compliance with the usage regime of the organic waste containers located in public spaces.

Furthermore, the consulting Local Entity establishes and requires the fee for the provision of the public service of household, commercial, and industrial waste collection, as well as the treatment and utilization or disposal of urban solid waste within the territorial scope of the municipality of [...], and for this purpose, it uses the municipal urban waste fee register.” (the underlining is ours)

That is to say, the inquiry was not only about the processing of data in relation to urban waste management but also to exercise the sanctioning authority and demand a fee for the provision of the service.

In this regard, the requested party indicates in its written allegations to the proposed resolution that the conclusion of this Opinion states that “the Association will be legitimized to process, as the data controller, the data of the service users strictly necessary for the exercise of the powers attributed to it by the Ordinance.” For this reason, it considers that, by making an analogous interpretation, it is legitimized “to exercise the powers attributed to it by the Ordinance and, therefore, the processing of container opening information is considered legitimate.”

While it is true that the aforementioned Opinion concludes in this manner, it is equally true that the interpretation carried out by the requested party is biased as it overlooks the two paragraphs preceding such conclusion:

“And in compliance with the aforementioned regulations, the Association [...] definitively approved on May 16, 2018, the aforementioned Ordinance regulating the selective collection and treatment of domestic and commercial waste within the municipalities that comprise it (BOG No. 106, of June 4, 2018), in which the use of the selective waste collection system by fractions is established as mandatory for all users according to the rules and regulations established by the Ordinance (Article 38.4).

This Ordinance regulates the different infractions and sanctions and attributes the sanctioning power to the Association (Article 33). Furthermore, the Ordinance states in its Article 38.4 that the Association already has a census of users.”

In accordance with the above, it must be concluded that (...)” Continuing this sentence with the invocation made by the requested party.

While the Ordinance regulating the management of waste of MCP regulates the different infractions and sanctions and attributes the sanctioning power to the party.

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The respondent (Article 53) does not indicate that MCP has a census of users of the waste collection system. Moreover, the system implemented by the respondent not only fails to identify whether the citizen has deposited the waste in the appropriate container, but it also does not allow for the identification of which citizen has deposited it, thus preventing the exercise of sanctioning authority regarding waste separation at source.

Therefore, the conclusion determined in Opinion D18-015 of the Basque Data Protection Agency cannot be applied to the treatment subject to this sanctioning procedure.

In light of the above, it must be stated that it is irrelevant that, as the respondent indicates in its written allegations regarding the initiation agreement, numerous municipalities have established a system similar to the one it has implemented, as each of them would need to be analyzed individually to determine whether they have one of the bases for legitimacy under Article 6.1 of the GDPR. All of this is independent of the fact that equality in illegality is not permissible (Constitutional Court Judgments 40/1989, 21/1992, 115/1995, 144/1999, 25/2022, among others).

On the other hand, the respondent also refers, both in its written allegations regarding the initiation agreement and in its written allegations regarding the proposed resolution, to two resolutions from the AEPD in which one complaint was archived and another was inadmissible in relation to the exercise of rights concerning this opening system. Resolutions that the respondent believes are based "precisely on the lawfulness and necessity of data processing, and analyzing these reasons, the AEPD has deemed MCP/SCPSA's actions to be in accordance with the law."

The resolutions referred to by the respondent are:

- That of file EXP202203664: In this case, a complaint was archived regarding the inadequate response to the exercise of the rights of opposition, deletion, and limitation concerning this opening system.

- That of file EXP202205572: In this case, a complaint regarding the exercise of the right of opposition concerning this opening system was not admitted for processing.

However, such procedures for exercising rights were resolved taking into account, solely and exclusively, the statements made by SCPSA regarding whether it had adequately responded to the applicants of the aforementioned rights protections, that is, without conducting an investigation aimed at determining whether the personal data processing being carried out by the respondent is in compliance with the GDPR, as has been done in the present procedure.

VI

Regarding the lack of transparency of the information, the respondent makes various allegations in this regard in its written allegations to the initiation agreement:

- In relation to the irregularity of Articles 13.1.c) and 14.1.c) of the GDPR (the purposes of the processing to which personal data is destined, as well as the legal basis of the processing).

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(treatment), the responding party, on one hand, refers to the allegations made in the previous section, while on the other hand, indicates that the acceptance of such allegations would imply the correction of the information to be provided to the interested party by identifying the specific enabling norm, which it states would be Law 7/2022, of April 8, on waste and contaminated soils for a circular economy, the



Foral Law 14/2018 on waste and its taxation, and Law 7/1985, of April 2, regulating the Bases of the Local Regime.

However, we have already indicated in Legal Basis IV that the processing of personal data carried out at the time of the complaint and currently performed by the responding party is not lawful or necessary for the sole achievement of the objectives of waste separation at source established by the regulations.

- Regarding the irregularity of Articles 13.2.f) and 14.2.g) of the GDPR (the existence of automated decisions, including profiling), the responding party states that the implementation of the waste container opening system through an electronic card linked to the postal address “does not allow for the creation of reliable profiles in the terms contained in Article 14.2.g) in relation to Article 22 of the General Data Protection Regulation,” since:

a) “There is no legal effect that derives from the information obtained from the use of the cards, taking as a reference the examples of the production of legal effects included in the guidelines on automated individual decisions and profiling for the purposes of Regulation 2016/679 prepared by the Article 29 Working Party on Data Protection.”

b) Regarding the requirement that the automated processing “significantly affects you in a similar manner,” the responding party indicates that “without prejudice to the fact that it is a legally indeterminate expression, we must point out that no such effect occurs in any case, and this is because such profiling is not carried out.”

The responding party continues to state that “when in the future it is intended to produce legal effects on users (payment by generation, for example), measures must be introduced that justify to the user and guarantee the accuracy of the data. By way of example:

- regulatory modification.
- change of legal regime so that the cards are non-transferable.
- association of the card to the person liable for payment of the service.

This will require informing users that the use of such cards will generate legal effects or significantly affect the person liable for payment and the other obligations indicated in this resolution, such as the impact assessment.”

For the reasons stated, it indicates that “no automated decision is made in relation to the information managed within the framework of the waste collection system implemented, which would indeed occur, for example, in the case of setting the waste fee based on the number of openings or imposing sanctions for lack of use without any criteria other than the openings.”

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Whenever it is established that the respondent currently does not process data in relation to inspection and sanctioning powers, nor the management of a waste fee, nor are there automated decisions regarding the data processing it carries out, this allegation is upheld, and it is considered that the respondent has not committed an irregularity under articles 13.2.f) and 14.2.g) of the GDPR.

On the other hand, the respondent acknowledges, regarding the lack of transparency in the information, the following errors that it will proceed to correct:

- The irregularity of article 14.2.f) of the GDPR (the source from which the personal data originates), as “at the time of implementation, only the data related to the postal address and opening data are processed.”
- The irregularity of article 13.2.e) of the GDPR (whether the communication of personal data is a legal or contractual requirement, or a necessary requirement to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the obligation to provide such data).
- The irregularity concerning the fact that when providing information to the data subjects, it is indicated that the data controller is SCPSA, although both the email for exercising rights and the website where additional privacy information about the system is found belong to MCP. In this regard, the respondent states that “it will proceed to modify this by indicating in all communications that the responsibility for

data processing will be carried out by the Commonwealth of the Pamplona Region.”

In conclusion, in light of the irregularities acknowledged by the respondent, as well as the dismissal of some of the allegations made regarding the transparency of the information provided, it is evident that the respondent has committed an infringement of articles 12.1, 13, and 14 of the GDPR.

VII

The respondent indicates in its written allegations to the initiation agreement that “in the documentation provided by this entity within the framework of the complaint file EXP202105962, an extract from the Record of Processing Activities related to the specific treatments related to the complaint was submitted. This extract did not correspond to the complete Record of Activities available to SCPSA, where the identification and contact details of the Data Controller are indeed recorded.

It is for this reason that we share the AEPD's criterion, stating that, indeed, the RAT must contain the information mentioned in the sanctioning file as it appears in the Record of Processing Activities held by the entity.”

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The documentation referred to by the respondent was submitted by SCPSA via an entry register dated April 4, 2022. Attached to it was a report from the data protection officer of SCPSA dated the same day, in which the following is indicated regarding the record of processing activities:

“Regarding the Record of Processing Activities and understanding that it refers exclusively to the treatments related to waste management, the two treatments involved in the management are provided.

The first of these is the treatment of “FILES” which refers to the request for new cards by the data subjects and is managed as another file among those existing in the entity.

The second of these is the so-called “WASTE CARDS AND OTHER OPENING DEVICES.”

A detail of the information contained in the record of processing activities related to these two treatments is attached, indicating that no modifications have occurred since their creation.

In this regard, the treatment of FILES was created on September 6, 2018, while the treatment of WASTE CARDS AND OTHER OPENING DEVICES was created on October 7, 2021.

The information contained in the General Record of Processing Activities related to these two treatments is attached as annex 15.”

In the aforementioned annex 15, the following information regarding the file named “Files” is recorded:

“- Activity of the treatment: Management of files.

- Purpose: To group all documentation related to the same matter, in relation to the activities inherent to or entrusted to the entity.

- Categories of data subjects: Users of SCPSA services

- Categories of data: Identifying. Commercial information. Transaction data.

- Transfers: Only those legally provided for.

- International transfers: Not provided for.

- Retention period: Data will be retained for the maximum period of limitation of legal actions from the end of the service provision or from the request for cancellation of the data by the data subjects, as applicable.

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- Security measures: Access control. Backup copies. Antimalware protection. Updates. Network security. Mobile security. Remote access. Activity logging. Control of devices and installed software. Furthermore, in the aforementioned Annex 15, the following information regarding the file named

"Waste Cards and Other Opening Devices" is recorded:

- Processing activity: Management of card issuance.

- Purpose: To manage the service of opening containers through electronic card.

- Categories of data subjects: Users of SCPSA services.

- Categories of data: Identifying data. Transaction data.

- Transfers: Only those legally provided for.

- International transfers: Not provided for.

- Retention period: Data will be retained for the maximum period of limitation of legal actions from the end of the service provision or from the request for data cancellation by the data subjects, as applicable.

- Security measures: Access control. Backup copies. Antimalware protection. Updates. Network security. Mobile security. Remote access. Activity logging. Control of devices and installed software."

In light of the above, and since neither of the two files contained the name and contact details of the data controller and, where applicable, the joint controller, the representative of the controller, and the data protection officer, the Legal Basis VI of the initiation agreement of this sanctioning procedure indicated that "there is evidence that the record of processing activities does not contain all the information required by the regulations, which could constitute a violation of Article 30.1 of the GDPR." During the evidentiary period, the defendant was requested to send a complete copy of the record of processing activities of personal data in its initial version, as well as copies of all subsequent versions thereof in relation to any addition, modification, or exclusion in its content (indicating the date of the change), certified by a competent authority.

On January 26, 2023, the defendant sent:

- Record of Processing Activities approved by the SCPSA Security Committee dated November 23, 2018.

- Record of Processing Activities following the expansion resulting from the sanctioning file initiated by the AEPD against MCP dated November 14, 2019.

- Record of Processing Activities approved by the SCPSA Security Committee dated February 23, 2022.

Let us now examine the two files of personal data processing indicated by the defendant that are involved in waste management:

1.- The file named "Files."

The data protection officer of SCPSA indicated in his report dated April 4, 2022, that the aforementioned file "was created on September 6, 2018" and that "no modifications have been made since its creation." Its content, according to documentation sent by SCPSA to this AEPD via registration on April 4, 2022, is as previously indicated.

However, after the evidentiary period, the following inconsistencies have been detected:

- In the version of the record of processing activities, following the expansion resulting from the sanctioning file initiated by the AEPD against MCP dated November 14, 2019, the file named "Files" does not appear.

- In the record of processing activities approved by the SCPSA Security Committee dated February 23, 2022, the file named "Files" has the following content:

- Processing activities: "Management of files."

- Purposes of processing: "Processing of personal data associated with files, contentious resources, sanctioning procedures, and citizen attention. It includes matters related to the transparency portal."

- Categories of data subjects: "Citizens/Users, Suppliers, Representatives."

- Category of personal data: "Identifying data: Name and surname, ID number, digital certificate, signature. Contact data: address, city, province, postal code, phone, email, fax. Commercial information. Transaction data. Others: depending on the nature of the matter, economic data may be processed."

- Category of recipients: "Data will be communicated to lawyers and agents for defense and representation in the entrusted matters, as well as, by legal obligation, to Courts and Tribunals, competent authorities, and, where applicable, Security Forces and Bodies."

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- Retention periods: "Data will be retained for the maximum period of limitation of legal actions from the end of the service provision or from the request for cancellation of the data by the interested parties, as applicable."

- Data transfers to a third country or international organization: "WeTransfer is used for file sharing with the designated attorney. The use of WeTransfer collects personal information and transfers it to the United States. Guarantees: section what parties do we share personal information with <https://wetransfer.com/legal/privacy>"

- Technical and organizational measures: "Access control. Backup copies. Antimalware protection. Updates. Network security. Mobile security. Remote access. Activity logging. Control of devices and installed software."

That is to say, a substantially different content from the initial one that has nothing to do with waste management.

Considering that when the system for opening waste containers subject to this procedure was implemented, it was autumn 2021:

- The record of processing activities in force was the one that was expanded as a result of the sanctioning file initiated by the AEPD against MCP on November 14, 2019, in which there is no file called "Expedientes."

- In the record of processing activities approved by the Security Committee of SCPSA on February 23, 2022, the file called "Expedientes" has no relation to waste management.

The proposed resolution indicated that, therefore, it was not appropriate to analyze this file in question. However, considering that:

- The report from the data protection officer of SCPSA dated April 4, 2022 stated that the file called "EXPEDIENTES (...)" refers to the request for new cards by the interested parties and (...) is managed as one more file among those existing in the entity."

- The risk analysis presented by the responding party on July 14, 2023 refers to "Processing 4: files," which has similar content to the file "Expedientes" from the record of processing activities approved by the Security Committee of SCPSA on February 23, 2022.

It is necessary to indicate that the file for processing personal data derived from an initially distributed electronic card must be consistent (in relation to purposes, with the data processed, etc.) with the file for processing personal data derived from a new card issued after a citizen's request, which is not evident in the present case.

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## 2.- The file called "Waste Cards and Other Opening Devices"

The data protection officer of SCPSA indicated in his report of April 4, 2022 that "it was created on October 7, 2021" and that "no modifications have been made since its creation." The content of this file, according to documentation sent by SCPSA to this AEPD via registration on April 4, 2022, is as indicated above.

This content coincides with that referred to as "Waste Cards and Other Devices" which appears in the record of processing activities approved by the Security Committee of SCPSA dated February 23, 2022, in which, it also states:

- That the data controller is SCPSA, providing the contact email address [protecciondatos@mcp.es](mailto:protecciondatos@mcp.es)

- That the data protection officer is Chaverri & Loitegui, Lawyers, Consultants, providing the contact email address [chaverriloitegui@chyl.es](mailto:chaverriloitegui@chyl.es)

However, it has already been indicated that the responding party (MCP) is the data controller, with

SCPSA being the processor for MCP. Therefore, the inaccuracy of this point, which must be corrected, constitutes a violation of Article 30 of the GDPR.

Although the current record of processing activities in force is the one approved by the Security Committee of SPCSA on February 23, 2022, this legal basis cannot be concluded without mentioning the record of processing activities in force at the time of the filing of the complaint that led to this sanctioning procedure, that is, on November 18, 2021, when the system was beginning to be implemented.

It has already been indicated that the record in force was the one that was expanded following the sanctioning file initiated by the AEPD against the Mancomunidad de la Comarca de Pamplona on November 14, 2019. In this record, for all existing treatments, it states:

- That the data controller is SCPSA, indicating its registered office, CIF, and telephone number.
- That the data protection officer is Chaverri & Loitegui, Lawyers, Consultants, indicating their postal address, as well as the email address for contact purposes [protecciondatos@mcp.es](mailto:protecciondatos@mcp.es)

Furthermore, although this record does not include either of the two files previously described ("Expedientes" and "Waste Cards and Other Opening Devices"), there were two files related to waste management:

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1.- The so-called "Customer Management. Waste Collection," regarding which the following information is provided:

- Purposes of processing: "Processing of personal data for contractual management, billing, and collection of waste collection services, processing of collection requests. Issuance of waste cards for the opening of containers, whether newly created or replaced due to incidents with the previous card. Furthermore, it is anticipated for the purpose of managing special opening requests so that the user has a greater time range for opening containers."

- Categories of data subjects: "Citizens/Users. Representatives"

- Category of personal data:

"Identifying data: name and surname, ID number, digital certificate, signature.

Contact data: address, locality, province, postal code, phone, email, fax.

Transaction data

Economic and financial data: bank account number.

Others: ownership of assets, ownership of construction licenses, gender for communication purposes, and nationality."

- Category of recipients: "No data transfers other than those legally provided are anticipated."

- Retention periods: "Data will be retained for the maximum period of prescription of legal actions from the end of the service provision or from the request for data cancellation by the data subjects, as applicable."

- Transfers of data to a third country or international organization: "No data is transferred outside the European Economic Area."

- Technical and organizational measures: "Servicios de la Comarca de Pamplona, S.A., has adapted to the technical and organizational measures established in RD/3/2010 (National Security Scheme - ENS). In particular, the following measures are applied: Access control; Backup copies; Anti-malware protection; Updates; Network security; Security in mobility; Remote access; Activity logging; Control of devices and installed software."

2.- The so-called "Customer Management. Waste Treatment," regarding which the following information is provided:

- Purposes of processing: "Processing of personal data for contractual management, billing, and collection of waste treatment and management services. Processing of identifying and contact data for the purpose of processing new waste cards, whether newly created or replaced due to incidents with

the previous card. Furthermore, it is anticipated for the purpose of managing special opening requests so that the user has a greater time range for opening containers.”

- Categories of data subjects: “Citizens/Users. Representatives”

- Category of personal data:

“Identifying data: name and surname, ID number, digital certificate, signature.

Contact data: address, locality, province, postal code, phone, email, fax.

Economic and financial data: bank account number.

Others: environmental identification, ownership of assets, ownership of construction licenses, gender for communication purposes, and nationality.”

- Category of recipients: “No data transfers other than those legally provided are anticipated.”

- Retention periods: “Data will be retained for the maximum period of prescription of legal actions from the end of the service provision or from the request for data cancellation by the data subjects, as applicable.”

- Transfers of data to a third country or international organization: “No data is transferred outside the European Economic Area.”

- Technical and organizational measures: “Servicios de la Comarca de Pamplona, S.A., has adapted to the technical and organizational measures established in RD/3/2010 (National Security Scheme - ENS). In particular, the following measures are applied: Access control; Backup copies; Anti-malware protection; Updates; Network security; Security in mobility; Remote access; Activity logging; Control of devices and installed software.”

In both files, it is indicated that SCPSA is responsible for the processing, although it has already been indicated that the claimed party (MCP) is responsible for these processes, with SCPSA being in charge of MCP.

Furthermore, we will indicate that no file related to the activation of the transport card to open waste containers was included in the aforementioned activity register, nor any file related to the use of the mobile application for opening such waste containers.

Considering that:

- There was an inaccuracy on the part of the data controller.

- There was no processing related to the activation of the transport card to open waste containers in the register.

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- And there was no treatment in the registry regarding the use of the mobile application for the opening of waste containers.

At the time of the submission of the complaint that gave rise to this sanctioning procedure, the respondent was in violation of Article 30 of the GDPR, as the registry is for the activities of processing and the mentioned processes were neither planned nor included therein.

Finally, it should be noted that the respondent, in its written allegations to the proposed resolution, has stated that it is currently updating the registry of processing activities to ensure it fully complies with the requirements of Article 30 of the GDPR.

In conclusion, the registry of processing activities did not comply with the provisions of Article 30 of the GDPR at the time of the submission of the complaint that gave rise to this sanctioning procedure and is currently inaccurate, which constitutes a violation of Article 30 of the GDPR.

## VIII

The respondent indicated in its written allegations to the initiation agreement, regarding the alleged infringement of the failure to carry out the data protection impact assessment (hereinafter, DPIA), that “it contracted a specialized company for compliance with Royal Decree 3/2010, of January 8, which regulates the National Security Scheme in the field of Electronic Administration (ENS, hereinafter), and with Royal Decree 951/2015, of October 23, which modifies RD 3/2010. During the execution of this project, a review of certain aspects of Regulation (EU) 2016/679 (GDPR, hereinafter) and Organic Law 3/2018 on Personal Data Protection (LOPDGDD) was carried out.

Among those aspects was the need to conduct impact assessments related to the different processes.

The result of this review yielded conclusions similar to those obtained in the analysis conducted by the entity itself, which summarized the lack of necessity to carry out an impact assessment related to the processing of personal data derived from waste management."

However, in its written allegations to the proposed resolution, the respondent states that it has contracted a new law firm, which has carried out, on June 20, 2023, the impact assessment related to data protection for the project "Waste Card and other devices." An assessment that is attached to the aforementioned written allegations.

While the preparation of such DPIA allows the respondent to comply with the regulations set forth in Article 35 of the GDPR, it is necessary to highlight that, at the time of the submission of the complaint that gave rise to this sanctioning procedure, that is, on November 18, 2021, when the system was just beginning to be implemented, the respondent had not conducted a DPIA because, as noted in its written allegations to the initiation agreement, the necessity analysis of...

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The Personal Data Impact Assessment conducted by Auren "yielded conclusions similar to those obtained in the analysis of the entity itself, which summarized that there was no need to carry out an impact assessment regarding the processing of personal data derived from waste management."

Since we did not have the necessity analysis that the responding party claimed to have conducted, the proposed resolution of this sanctioning procedure examined the necessity analysis carried out by Auren in 2021, after which it was revealed:

- That a proper analysis had not been conducted on whether the processing "File of electronic opening devices" requires the performance of a DPIA.
- That in the processing of data derived from the implementation of a waste container opening system equipped with electronic locks corresponding to Access Control Equipment (ECA) for such containers, activated by a card or mobile application linked to a specific postal address, the following criteria from WP248 of the Article 29 Working Party apply:
- Systematic observation
- Large-scale data processing
- Innovative use or application of new technological or organizational solutions
- The processing itself prevents data subjects from exercising a right or using a service or executing a contract

That is, four of the criteria are met, so in light of what Auren indicated in its necessity analysis for DPIA, it should have been determined that the processing of personal data derived from the implementation of a waste container opening system equipped with electronic locks corresponding to Access Control Equipment (ECA) for such containers, activated by a card or mobile application linked to a specific postal address, required the performance of a DPIA. This was determined in the necessity analysis conducted by MCP on June 20, 2023.

In conclusion, in view of the submission by the responding party of the impact assessment related to data protection for the project "Waste Card and other devices" dated June 20, 2023, in which the necessity analysis determines the obligation to carry out a DPIA, and since the circumstances of the aforementioned processing of personal data have not changed since its inception, the responding party should have carried out such a DPIA before the commencement of the processing of personal data, which demonstrates that the responding party has committed an infringement of Article 35 of the GDPR.

IX

The responding party considers that the sanction consisting of the cessation of all processing of personal data related to the waste container opening system via electronic card or mobile application linked to the address is

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disproportionate, as it does not achieve an effective, deterrent, and proportionate reaction to the violation.

It also considers that the proposed resolution has not taken into account the circumstances outlined in Article 83 of the GDPR when determining the imposed sanction.

It should be noted in this regard that the corrective powers of the data protection authorities are regulated in Article 58.2 of the GDPR, among which is “to impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each particular case.” (letter i)

The aforementioned Article 83 of the GDPR regulates the “General conditions for the imposition of administrative fines,” fines that, in accordance with its paragraph 1, must be “effective, proportionate, and deterrent,” and for which the circumstances regulated in its paragraph 2 will be taken into account in order to determine their amount.

However, the proposed resolution of this procedure did not propose to sanction the respondent with an administrative fine, but rather, under the protection of Article 83.7 of the GDPR and Article 77 of the LOPDGDD (in the version in force at the time the events occurred), proposed a warning sanction. A sanction that can be imposed on the authorities and public bodies specified in Article 77.1 of the LOPDGDD without prejudice to the other corrective powers of Article 58.2 of the GDPR (Article 83.7 of the GDPR).

And among such corrective powers is the one proposed in the proposed resolution: “to impose a temporary or definitive limitation on processing, including its prohibition;” (Article 58.2.f) of the GDPR). And since the corrective measure of temporary or definitive limitation on processing is neither a sanction nor an administrative fine, the principle that the sanction must be effective, proportionate, and deterrent cannot be applied to such limitation, nor the circumstances of Article 83.2 of the GDPR.

After all, with the proposed corrective measure, consisting of the respondent ceasing all processing of personal data related to the mentioned system for opening waste containers via an electronic card or mobile application linked to the residence, a sanction is not being imposed, but rather it is preventing the respondent from continuing to carry out processing of personal data that is currently unlawful, as it does not have one of the legal bases of Article 6.1 of the GDPR.

However, the respondent offers, in its written allegations to the proposed resolution, that instead of ceasing the processing, a series of corrective measures be adopted by MCP so that the processing “fully complies with the requirements of the European Data Protection Regulation and the LOPDGDD, which would translate into the following:

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“1. Adaptation of the Record of processing activities to the requirements of Article 30 of the European Data Protection Regulation.

2. Improvement of the duty to inform, emphasizing the principle of transparency.

3. Carrying out a Data Protection Impact Assessment of the mobile application for opening the container and, if the requirements of Article 36 of the European Data Protection Regulation are met, conducting prior consultation with the AEPD to determine the possibility of its use.

4. Modification of the ordinance to specify and expressly include the objective indicated by the AEPD regarding recycling.

5. The use of the mobile application could be eliminated if the AEPD deems it appropriate once the Data Protection Impact Assessment of the mobile application for opening the container has been carried out and, if the requirements of Article 36 of the European Data Protection Regulation are met, conducting prior consultation with the AEPD.



6. The Commonwealth shows its utmost willingness to adopt multiple measures to fully adapt the processing of personal data.
7. Increase training for all employees regarding their obligations in data protection matters.
8. Review the security measures applied to the personal data being processed and, in case a high risk for personal data is detected, increase the existing measures.
9. Evaluate the possibility of adhering to codes of conduct and/or certification mechanisms in data protection matters.
10. Create communication campaigns aimed at citizens emphasizing the legal and public interest reasons that justify the processing."

It is necessary to emphasize in this regard that such actions to which the respondent commits are obligations of a data controller, which, under the proactive responsibility principle regulated in Article 5.2 of the GDPR, should have been fulfilled, along with the rest of the data protection regulations, from before the start of the processing of personal data and throughout the entire processing, as well as being able to demonstrate it. This has not occurred in the present case, as previously stated.

X

Article 6.1 of the GDPR states that "Processing shall be lawful only if and to the extent that at least one of the following applies:

a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes;

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b) the processing is necessary for the performance of a contract in which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;

c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;

d) the processing is necessary to protect vital interests of the data subject or of another natural person;

e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;

f) the processing is necessary for the satisfaction of legitimate interests pursued by the data controller or by a third party, provided that such interests do not override the interests or the fundamental rights and freedoms of the data subject which require the protection of personal data, in particular when the data subject is a child."

SCPSA indicates in its privacy policy the following bases for legitimizing the processing:

"- The processing is necessary to comply with a legal obligation to which the Controller is subject;

- The processing is necessary for the performance of a task in the public interest or for the exercise of public powers conferred on the Data Controller;"

Article 8 of the LOPDGDD states:

"1. The processing of personal data may only be considered lawful in compliance with a legal obligation enforceable against the controller, in the terms provided in Article 6.1.c) of Regulation (EU) 2016/679, when such is provided for by a norm of European Union law or a norm with the rank of law, which may determine the general conditions of processing and the types of data subject to it as well as the transfers that may occur as a result of compliance with the legal obligation. Such a norm may also impose special conditions on the processing, such as the adoption of additional security measures or others established in Chapter IV of Regulation (EU) 2016/679.

2. The processing of personal data may only be considered lawful in the performance of a task carried out in the public interest or in the exercise of public powers conferred on the controller, in the terms provided in Article 6.1.e) of Regulation (EU) 2016/679, when it derives from a competence attributed by a norm with the rank of law."

Article 12.5 of Law 22/2011, of July 28, on waste and contaminated soils states that “It is the responsibility of Local Entities, or of the Provincial Councils when applicable:

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“a) As a mandatory service, the collection, transportation, and treatment of domestic waste generated in homes, businesses, and services in the manner established by their respective ordinances within the legal framework set forth in this Law, as dictated by the Autonomous Communities and the sectoral regulations regarding extended producer responsibility. The provision of this service corresponds to the municipalities, which may carry it out independently or in association.”

Furthermore, Law 7/2022, of April 8, on waste and contaminated soils for a circular economy, in effect since April 10, 2022, states in its article 12.5 that “It is the responsibility of Local Entities, the cities of Ceuta and Melilla, or, when appropriate, the provincial councils:

a) As a mandatory service, throughout their territorial scope, the collection, transportation, and treatment of domestic waste in the manner established by their respective ordinances, in accordance with the legal framework established in this law, in the laws and planning instruments approved by the autonomous communities, where applicable, and in the sectoral regulations regarding extended producer responsibility. For these purposes, a sufficient collection network must be available, which will include clean points or, where applicable, alternative delivery points agreed upon by the local entity for the free removal of such waste. The provision of this service corresponds to the municipalities, which may carry it out independently or in association, in accordance with the provisions of Law 7/1985, of April 2, regulating the Bases of the Local Regime.”

That is, there has been, and there is, no regulation with the force of law that obliges or legitimizes MCP, in the terms provided in article 8 of the LOPDGDD, to carry out any processing of personal data to fulfill its obligations regarding the collection, transportation, and treatment of domestic waste.

In light of the above, it is considered that the processing of personal data from the system for opening waste containers equipped with electronic locks corresponding to Access Control Equipment (ECA) for such containers, activated by a card linked to a specific postal address, a transport card activated for the opening of containers, or a mobile application linked to a specific postal address has been carried out without a legitimizing cause, which constitutes a violation of article 6.1 of the GDPR.

XI

Article 12.1 of the GDPR states that “The data controller shall take appropriate measures to provide the data subject with all the information indicated in articles 13 and 14, as well as any communication in accordance with articles 15 to 22 and 34 related to the processing, in a concise, transparent, intelligible, and easily accessible form, using clear and plain language, in particular any information specifically addressed to a child. The information shall be provided in writing or by other means, including, where appropriate, by electronic means. When requested by the data subject, the information may be provided verbally, provided that the identity of the data subject is demonstrated by other means.”

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Beforehand, we must indicate, regarding the reference made by SCPSA to PS/00201/2019 of this Agency, that this sanctioning file was initiated against MCP due to a defect in the information provided during the pilot test of the system for the implementation of waste container openings using electronic cards, which does not serve to prejudice MCP's actions regarding the implementation of the system.

On the other hand, it should be noted that SCPSA distinguishes two phases within the implementation of the electronic opening system for waste containers with electronic cards and mobile application:

- Implementation phase: Through a mail drop, two electronic cards linked to their postal address were

attached, which also informed service users in each area on how to use the electronic opening container system.

- Exploitation phase: When users of the system can request new cards, the activation of the transport card for opening waste containers, or the credentials for the mobile application for opening containers. In this case, it is necessary to differentiate whether the information was provided during the implementation phase of the system or during the exploitation phase of the system, since in the first case we are talking about the information that must be provided when personal data has not been obtained from the data subject (Article 14 of the GDPR), while in the second case we must refer to the information that must be provided when personal data is obtained from the data subject.

Article 14 of the GDPR, regarding personal data not obtained from the data subject, states:

“1. When personal data has not been obtained from the data subject, the data controller shall provide the following information:

- a) the identity and contact details of the controller and, where applicable, of its representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended, as well as the legal basis for the processing;
- d) the categories of data concerned;
- e) the recipients or categories of recipients of the personal data, if any;
- f) where applicable, the intention of the controller to transfer personal data to a recipient in a third country or an international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49, paragraph 1, second subparagraph, reference to the appropriate or suitable safeguards and the means to obtain a copy thereof or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject with the following information necessary to ensure fair and transparent processing of personal data concerning the data subject:

- a) the period for which the personal data will be stored or, if that is not possible, the criteria used to determine that period;
- b) where the processing is based on Article 6, paragraph 1, letter f), the legitimate interests of the controller or a third party;
- c) the existence of the right to request from the controller access to personal data concerning the data subject, and their rectification or erasure, or the restriction of processing, and to object to the processing, as well as the right to data portability;
- d) where the processing is based on Article 6, paragraph 1, letter a), or Article 9, paragraph 2, letter a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent before its withdrawal;
- e) the right to lodge a complaint with a supervisory authority;
- f) the source from which the personal data originate and, if applicable, whether they come from publicly accessible sources;
- g) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.”

At the time of the implementation of the system, the cards that were distributed were accompanied by an informative letter explaining how to use the electronic opening containers, which refers to the privacy policy:

“In relation to the data recorded by these cards and their subsequent processing, we are pleased to inform you that: Each of the cards delivered incorporates a device that allows recording the number of openings of different containers, data that will be associated with the postal address indicated on the outside of the card. As these are data, sometimes related to an identified or identifiable natural person, the information obtained regarding the opening of containers will be processed in accordance with personal data protection regulations. All data collected as a result of the use of these cards will be processed under the responsibility of Servicios de la Comarca de Pamplona, S.A. (SCPSA), to analyze the use of containers in the fractions of organic matter and others, and specifically to know their degree

of use in order to achieve the regulatory objectives of application, as well as to carry out information activities, promotion of the service and its results. Furthermore, we inform you that

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You may exercise your rights of access, rectification, deletion, and the other rights that assist you by contacting the Data Controller via the email address [protecciondatos@mcp.es](mailto:protecciondatos@mcp.es). You can consult additional information about privacy at [www.mcp.es/fichadatosresiduos](http://www.mcp.es/fichadatosresiduos).

On the other hand, the following text appears on the distributed cards:

“This card is the property of Servicios de la Comarca de Pamplona SA and its use is subject to the conditions determined by it.

Responsible: Servicios de la Comarca de Pamplona SA

You can exercise your rights at [protecciondatos@mcp.es](mailto:protecciondatos@mcp.es)

Additional information at [www.mcp.es/fichadatosresiduos](http://www.mcp.es/fichadatosresiduos).”

The party claimed in its letter dated January 24, 2022, indicated that in the link related to additional information about privacy, concerning the “FILE OF ELECTRONIC OPENING DEVICES,” dated October 15, 2021, the following appears:

“- Who is responsible for the processing of your data?

Identity: Servicios de la Comarca de Pamplona, S.A.

Postal address: Calle General Chinchilla, nº 7, 31002. Pamplona

Email: [protecciondatos@mcp.es](mailto:protecciondatos@mcp.es)

Data Protection Officer: Chaverri & Loitegui, Abogados, Consultores

Address of the Data Protection Officer: Avda. Baja Navarra, 2, Entreplanta of.3

Email: [protecciondatos@mcp.es](mailto:protecciondatos@mcp.es)

- For what purpose do we process your data?

The opening data of the containers and organic matter and other waste mailboxes, and, where applicable, packaging obtained from each of the electronic opening devices enabled for this purpose will be processed to analyze the use of those containers and mailboxes and specifically to know the separation rates in order to achieve the applicable regulatory objectives, as well as to carry out promotional activities for the service and its results.

- How long do we keep your data?

The personal data collected will be kept for as long as necessary to fulfill the purpose for which they were collected and to determine any possible liabilities that may arise from the purpose and its processing, in addition to the periods established in the regulations on archives and documentation.

- What is the legal basis for the processing of your data?

- The processing is necessary for compliance with a legal obligation applicable to the data controller.

- The processing is necessary for the performance of a task carried out in the public interest or in the exercise of public powers conferred on the data controller.

- The data provided by the data subject in reference to the address associated with the opening devices.

- To whom will your data be communicated?

- No data communications to third parties are planned, except as legally provided.

- No international data transfers will be made.

- What are your rights when you provide us with your data?

Any person has the right to obtain information about the processing of their data.

Data subjects have the right to access their personal data, as well as to request the rectification of inaccurate data or, where appropriate, to request its deletion when, among other reasons, the data is no longer necessary for the purposes for which it was collected.

In certain circumstances, data subjects may request the limitation of the processing of their data, in which case we will only keep them for the exercise of rights or the defense of claims.

In certain circumstances and for reasons related to their particular situation, data subjects may object

to the processing of their data. Servicios de la Comarca de Pamplona, S.A., will cease to process the data, except for compelling legitimate reasons, or for the exercise or defense of possible claims. Likewise, the data subject has the right to data portability.

If you believe that your data has not been processed correctly, you can inform us via the email address [protecciondatos@mcp.es](mailto:protecciondatos@mcp.es) and subsequently go to the supervisory authority, or go directly to the supervisory authority.

- How have we obtained your data?

- From the usage data of the electronic opening devices by the data subject.

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- From the Territorial Wealth Registry approved by Foral Law 12/2006, of November 21.

- The types of data processed are:

- Identifying and contact data: Name, surname, associated postal address, email address, and phone number

- Transaction data: Data on the use of electronic opening devices linked to the postal address

In accordance with the diligence carried out by the AEPD Inspection on June 13, 2022, the following additional information regarding data protection related to the "FILE OF ELECTRONIC OPENING DEVICES," dated October 15, 2021, was found on the website [www.mcp.es/fichadatosresiduos](http://www.mcp.es/fichadatosresiduos):

- Who is responsible for processing your data?

Identity: Servicios de la Comarca de Pamplona, S.A.

Postal address: Calle General Chinchilla, nº 7, 31002. Pamplona

Email: [protecciondatos@mcp.es](mailto:protecciondatos@mcp.es)

Data Protection Officer: Chaverri & Loitegui, Abogados, Consultores

Address of the Data Protection Officer: Avda. Baja Navarra, 2, Entreplanta of.3

Email: [protecciondatos@mcp.es](mailto:protecciondatos@mcp.es)

- For what purpose do we process your data?

The data on the opening of containers by each of the cards will be processed to analyze the use of the containers in the fractions of organic matter and residual waste, specifically to know the separation rates in order to achieve the applicable regulatory objectives, as well as to carry out promotional activities for the service and its results.

- How long do we keep your data?

The personal data collected will be kept for as long as necessary to fulfill the purpose for which they were collected and to determine any potential liabilities that may arise from the purpose and its processing, in addition to the periods established in the regulations on archives and documentation.

- What is the legal basis for processing your data?

- The processing is necessary for compliance with a legal obligation applicable to the data controller.

- The processing is necessary for the performance of a task carried out in the public interest or in the exercise of public powers conferred on the data controller.

- To whom will your data be communicated?

- No data communications to third parties are planned, except as legally required.

- No international data transfers will be made.

- What are your rights when you provide us with your data?

Any person has the right to obtain information about the processing of their data.

Data subjects have the right to access their personal data, as well as to request the rectification of inaccurate data or, where appropriate, to request its deletion when, among other reasons, the data are no longer necessary for the purposes for which they were collected.

In certain circumstances, data subjects may request the limitation of the processing of their data, in

which case we will only keep them for the exercise of rights or the defense of claims.

In certain circumstances and for reasons related to their particular situation, data subjects may object to the processing of their data. Servicios de la Comarca de Pamplona, S.A., will cease processing the data, except for compelling legitimate reasons, or for the exercise or defense of possible claims.

Likewise, the data subject has the right to data portability.

If you believe that your data has not been processed correctly, you can inform us via the email address [protecciondatos@mcp.es](mailto:protecciondatos@mcp.es) and subsequently go to the supervisory authority or go directly to the supervisory authority.

- How have we obtained your data?

- From the usage data of the electronic opening devices by the data subject.

- From the Territorial Wealth Registry approved by Foral Law 12/2006, of November 21.

- The types of data processed are:

- Identifying and contact data: Name and surname, associated postal address

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- Regarding transactions: Usage data of the cards linked to the postal address”

In this regard, the following irregularities are observed in the information:

- Article 14.1.c) of the GDPR: “the purposes of the processing for which the personal data are intended, as well as the legal basis for the processing.” Regardless of the fact that we have already indicated in the previous legal basis that the legal basis for the processing is not based on a legal obligation or a task carried out in the public interest or in the exercise of public powers, there is no reference in the information, as mandated by the GDPR, to any provision of Union Law or law with the rank of law.

Furthermore, in the version dated October 15, 2021, of additional information on data protection regarding the processing “Waste Card File,” which the responding party indicated in its writing of January 24, 2022, was the published version, it is stated as another basis for legitimizing the processing “The data provided by the data subject regarding the address associated with the opening devices.” This statement does not align with any of the legal bases for processing regulated in Article 6.1 of the GDPR.

- In the version dated October 15, 2021, of additional information on data protection regarding the processing “Waste Card File,” which the responding party indicated in its writing of January 24, 2022, was the published version, it is stated that the data being processed includes, in relation to identifiers and contact information, “Name, surname, associated postal address, email address, and phone number.” While in the section regarding “How we have extracted your data,” it is indicated that this data has been extracted from the usage data of the electronic opening devices by the data subject and from the Territorial Wealth Registry approved by Foral Law 12/2006, of November 21.

The only data that has been extracted from the Territorial Wealth Registry is the postal address, as acknowledged by the responding party in its written allegations to the initiation agreement.

However, through requests for new cards, activation of the transport card for opening waste containers, and/or credentials to activate the mobile application for opening waste containers, not only the indicated data (“Name, surname, associated postal address, email address, and phone number”) is extracted, but also other data not referred to, specifically the ID number, signature, and email address. Thus, there is a discrepancy both in the enumeration of processed data and in the indication of all sources from which the personal data originates, in accordance with Article 14.2.f) of the GDPR.

On the other hand, Article 13 of the GDPR, regarding data obtained from the data subject, states that:

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"1. When personal data relating to a data subject are obtained from that data subject, the data controller shall provide the data subject with all the information indicated below at the time the data are obtained:

- a) the identity and contact details of the controller and, where applicable, of its representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) where the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;
- e) the recipients or categories of recipients of the personal data, where applicable;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate safeguards and the means to obtain a copy of them or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the controller shall provide the data subject, at the time the personal data are obtained, with the following information necessary to ensure fair and transparent data processing:

- a) the period for which the personal data will be stored or, if that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the controller access to personal data relating to the data subject, and their rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability;
- c) where the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent prior to its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of not providing such data;

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- f) the existence of automated decisions, including profiling, referred to in Article 22, paragraphs 1 and 4, at least in such cases, significant information about the logic applied, as well as the importance and expected consequences of such processing for the data subject."

At the time of system exploitation, that is, when users of the system can request new cards, the activation of the transport card for opening waste containers, or the credentials for the mobile application for opening containers, such requests indicate the following:

"In compliance with the provisions of the General Data Protection Regulation, we inform you that the data collected in this form will be incorporated into a file for the purpose of managing the service of opening containers through an electronic card. This data will not be transferred to third parties except as provided by law. Furthermore, we inform you that the data controller will be SCPSA, to whom you may contact in order to exercise your rights of access, rectification, deletion, and the other rights that you have through the email [protecciondatos@mcp.es](mailto:protecciondatos@mcp.es).

You can consult additional information about privacy at the following link

[www.mcp.es/fichadatosresiduos](http://www.mcp.es/fichadatosresiduos)" (the underlining is ours).

In response to such requests, a letter is sent, the content of which, regarding personal data protection, varies depending on the request:

- In the case of a request for a new card, the following is indicated:

"In relation to the data recorded by these cards and their subsequent processing, we are pleased to inform you that: 'Each of the cards issued incorporates a device that allows the number of openings of the different containers to be recorded, a data point that will be associated with the postal address indicated on the outside of the card. As these are data sometimes related to an identified or identifiable person, the information obtained regarding the opening of containers will be processed in accordance with personal data protection regulations. All data collected as a result of the use of these cards will be processed under the responsibility of Servicios de la Comarca de Pamplona, S.A. (SCPSA), to analyze the use of the containers for organic matter and other waste fractions, and specifically to know their degree of use in order to achieve the applicable regulatory objectives, as well as for the performance of information activities, service promotion, and its results. Furthermore, we inform you that you may exercise your rights of access, rectification, deletion, and the other rights that you have by contacting the Data Controller through the email [protecciondatos@mcp.es](mailto:protecciondatos@mcp.es). You can consult additional information about privacy at [www.mcp.es/fichadatosresiduos](http://www.mcp.es/fichadatosresiduos).'" (the underlining is ours).

- In the case of requests for the activation of a transport card to electronically open waste containers, or for the sending of credentials for the mobile application for opening waste containers, the following is indicated:

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"This electronic communication has been sent by Servicios de la Comarca de Pamplona, S.A. (SCPSA), responsible for the processing of the provided data. This email address has been provided by you for the receipt of messages. You receive this electronic communication based on the request for card activation (in the case of a request for credentials for the mobile application, it is indicated that 'You receive this electronic communication based on the request related to the mobile application'). You may exercise your rights of access, rectification, cancellation, opposition, and other rights guaranteed by the current regulations on data protection by addressing the Data Controller via the email [protecciondatos@mcp.es](mailto:protecciondatos@mcp.es). You can consult additional information about privacy at [www.mcp.es/fichadatosresiduos](http://www.mcp.es/fichadatosresiduos)." (the underlining is ours).

That is to say, the additional information about privacy in cases of requests for new cards, the activation of the transport card for opening waste containers, or the credentials for the mobile application for opening containers, is the same as that previously described for the implementation phase of the system.

In this regard, the following irregularities in the information are observed:

- Article 13.1.c) of the GDPR: "the purposes of the processing to which the personal data are intended, as well as the legal basis for the processing." The same issue arises as we indicated regarding Article 14.1.c), so we refer to what was previously stated in this regard.
- Article 13.2.e) of the GDPR: The data subjects are not informed whether the communication of personal data is a legal or contractual requirement, or a necessary requirement to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of not providing such data.

Furthermore, and as recognized by the responding party in its written allegations to the initiation agreement, it is observed that, both in the implementation phase of the system and in the operational phase of the system, at the time of providing information to the data subjects, it is indicated that the responsible party is SCPSA, although both the email for exercising rights ([protecciondatos@mcp.es](mailto:protecciondatos@mcp.es)) and the website where the additional information about the system's privacy is found ([www.mcp.es/fichadatosresiduos](http://www.mcp.es/fichadatosresiduos)) belong to MCP, which leads to confusion among the data subjects, resulting in a lack of transparency imposed by Article 12 of the GDPR when providing information to the data subjects.

For the above reasons, it is considered that there is evidence that the data subjects have not been provided with all the information indicated in Articles 13 and 14, which constitutes a violation of Article 12.1 of the GDPR, as well as the aforementioned Articles 13 and 14 of the GDPR.



## XII

Article 30 of the GDPR, concerning the record of processing activities, states:

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"1. Each controller and, where applicable, their representative shall maintain a record of the processing activities carried out under their responsibility. This record shall contain all the information indicated below:

a) the name and contact details of the controller and, where applicable, the joint controller, the representative of the controller, and the data protection officer;

b) the purposes of the processing;

c) a description of the categories of data subjects and the categories of personal data;

d) the categories of recipients to whom the personal data have been or will be disclosed, including recipients in third countries or international organizations;

e) where applicable, the transfers of personal data to a third country or an international organization, including the identification of that third country or international organization and, in the case of transfers referred to in Article 49, paragraph 1, second sentence, the documentation of adequate safeguards;

f) where possible, the envisaged time limits for erasure of the different categories of data;

g) where possible, a general description of the technical and organizational measures referred to in Article 32, paragraph 1."

In relation to the Record of Processing Activities concerning waste management, the responding party has provided:

- The Record of Processing Activities following the expansion resulting from the sanctioning procedure initiated by the AEPD against MCP on November 14, 2019, which was in force at the time of the submission of the complaint that gave rise to this sanctioning procedure.

In this record, there are two files related to waste management: "Customer Management. Waste Collection" and "Customer Management. Waste Treatment."

These contain the information required by the aforementioned provision of the GDPR, although SCPSA appears as the data controller. It has already been indicated that the responding party (MCP) is the data controller, with SCPSA being the processor of the former.

On the other hand, this record did not include any processing related to the activation of the transport card to open waste containers, nor any file related to the use of the mobile application for opening such waste containers.

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- The Record of Processing Activities approved by the Security Committee of SCPSA on February 23, 2022.

In this record, there is a file related to waste management: "Waste Cards and Other Devices." In it, although the information required under Article 30 of the GDPR is included, SCPSA is listed as the data controller. It has already been indicated that the party being complained against (MCP) is the data controller, with SCPSA acting as the processor on behalf of the former.

For the reasons stated, it is considered that there is evidence that:

- In the record of processing activities in force at the time of the filing of the complaint that led to the current sanctioning procedure, the data processing carried out by the party being complained against (i) when requesting the activation of the transport card to open the waste containers, nor (ii) when requesting the credentials to use the mobile application for opening such waste containers was not

recorded.

- The record of processing activities incorrectly included, and still includes, part of the information required by the regulations.

This constitutes a violation of Article 30.1 of the GDPR.

### XIII

Article 35 of the GDPR establishes the obligation to carry out a Data Protection Impact Assessment (DPIA), stating:

“1. When it is likely that a type of processing, particularly if it uses new technologies, by its nature, scope, context, or purposes, poses a high risk to the rights and freedoms of natural persons, the data controller shall, prior to the processing, carry out an assessment of the impact of the processing operations on the protection of personal data. A single assessment may address a series of similar processing operations that pose similar high risks.

2. The data controller shall seek the advice of the data protection officer, if appointed, when carrying out the impact assessment related to data protection.

3. The data protection impact assessment referred to in paragraph 1 shall be required in particular in the case of:

a) systematic and extensive evaluation of personal aspects of natural persons based on automated processing, including profiling, and on which decisions are based that produce legal effects concerning the natural persons or similarly significantly affect them;

b) large-scale processing of special categories of data referred to in Article 9, paragraph 1, or of personal data relating to criminal convictions and offenses referred to in Article 10, or

c) systematic large-scale monitoring of a publicly accessible area.

4. The supervisory authority shall establish and publish a list of the types of processing operations that require a data protection impact assessment in accordance with paragraph 1. The supervisory authority shall communicate those lists to the Committee referred to in Article 68.

5. The supervisory authority may also establish and publish a list of the types of processing that do not require data protection impact assessments. The supervisory authority shall communicate those lists to the Committee.

6. Before adopting the lists referred to in paragraphs 4 and 5, the competent supervisory authority shall apply the consistency mechanism provided for in Article 63 if those lists include processing activities related to the offering of goods or services to data subjects or to the monitoring of their behavior in several Member States, or processing activities that may substantially affect the free movement of personal data within the Union.

7. The assessment shall include at least:

a) a systematic description of the envisaged processing operations and the purposes of the processing, including, where appropriate, the legitimate interest pursued by the data controller;

b) an assessment of the necessity and proportionality of the processing operations in relation to their purpose;

c) an assessment of the risks to the rights and freedoms of data subjects referred to in paragraph 1, and

d) the measures envisaged to address the risks, including safeguards, security measures, and mechanisms to ensure the protection of personal data, and to demonstrate compliance with this Regulation, taking into account the rights and legitimate interests of data subjects and other persons affected.

8. Compliance with approved codes of conduct referred to in Article 40 by the respective controllers or processors shall be duly taken into account when assessing the impact of the processing operations carried out by such controllers or processors, particularly for the purposes of the data protection impact assessment.

9. Where appropriate, the controller shall seek the views of data subjects or their representatives regarding the intended processing, without prejudice to the protection of public or commercial interests or the security of the processing operations.

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10. When the processing based on Article 6(1)(c) or (e) has its legal basis in Union law or in the law of the Member State applicable to the data controller, such law regulates the specific processing operation or set of operations in question, and a data protection impact assessment has already been carried out as part of a general impact assessment in the context of the adoption of such legal basis, paragraphs 1 to 7 shall not apply unless Member States consider it necessary to carry out such assessment prior to the processing activities.

11. If necessary, the controller shall examine whether the processing is in compliance with the data protection impact assessment, at least when there is a change in the risk posed by the processing operations.”

As indicated in the WP 248 Guidelines by the Article 29 Working Party on data protection impact assessment (DPIA) and to determine whether the processing “likely results in a high risk” for the purposes of the GDPR, “The words ‘in particular’ in the introductory sentence of Article 35(3) of the GDPR refer to a non-exhaustive list. There may be ‘high risk’ processing operations that are not included in this list but that pose similarly elevated risks. These processing operations must also undergo a DPIA. For this reason, the criteria developed below sometimes go beyond a simple explanation of what should be understood from the three examples provided in Article 35(3) of the GDPR.

In order to provide a more concrete set of processing operations that require a DPIA due to their inherent high risk, taking into account the particular elements of Article 35(1) and Article 35(3)(a) to (c), the list to be adopted at the national level under Article 35(4), and recitals 71, 75, and 91, as well as other references in the GDPR to processing operations that “likely result in a high risk,” the following nine criteria must be considered:”

“3. Systematic observation: processing used to observe, monitor, and control data subjects, including data collected through networks or ‘systematic observation [...] of a publicly accessible area’ [Article 35(3)(c)].”

Through the use of electronic cards and the mobile application for opening containers, there is the possibility to observe, monitor, and control how many times, when, and where the different containers (organic waste or residual waste) are opened by the service users.

“5. Large-scale data processing: the GDPR does not define what is meant by large scale, although recital 91 offers some guidance. In any case, the GT29 recommends that the following factors be taken into account, in particular, when determining whether the processing is carried out on a large scale:

a) the number of data subjects affected, either as a specific figure or as a proportion of the relevant population;

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b) the volume of data or the variety of distinct data elements being processed;

c) the duration, or permanence, of the data processing activity;

d) the geographical scope of the data processing activity.”

In this case, it is intended to implement the container opening system through electronic cards and/or the mobile application for the entire population that makes up MCP, thus fulfilling this criterion.

“8. Innovative use or application of new technological or organizational solutions, such as combining the use of fingerprint and facial recognition to improve physical access control, etc.”

In this regard, it should be noted that the automatic container opening system implies a new way of data collection, as it requires the use of the card provided to the interested parties or the mobile application (SIGMA MCP) to proceed with the opening of the containers.

“9. When the processing itself ‘prevents the data subjects from exercising a right or using a service or executing a contract’ (Article 22 and Recital 91). This includes processing operations intended to allow, modify, or deny data subjects access to a service or a contract.”

In this line, it should be indicated that interested parties must use the electronic cards or the mobile application to open the automatic containers if they wish to deposit their waste, as established in the Regulatory Ordinance on waste management in the MCP.

In light of the above, it is observed that the processing of personal data subject to this procedure complies with four of the nine criteria set out by the Article 29 Working Party, which means that a DPIA should have been carried out given the high risk it poses to the rights and freedoms of natural persons, which, in view of the existing evidence, constitutes a violation of Article 35 of the GDPR.

#### XIV

In accordance with the available evidence, it is considered that the facts presented violate the provisions of Articles 6.1, 12.1, 13, 14, 30.1, and 35 of the GDPR, which, if confirmed, could imply the commission of the infringements typified in Article 83 paragraphs 4.a), 5.a), and 5.b) of the GDPR, which state the following:

“4. Infringements of the following provisions shall be subject to administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to 2% of the total annual global turnover of the preceding financial year, whichever is higher:

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a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43;

(...)

5. Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, whichever is higher:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;

b) the rights of data subjects under Articles 12 to 22;”

In this regard, the LOPDGDD, in its Article 71, establishes that “Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements.”

For the purposes of the limitation period, Article 72 of the LOPDGDD states:

“Article 72. Very serious infringements.

1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall be subject to a limitation period of three years: infringements that constitute a substantial violation of the articles mentioned therein, particularly the following:

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679.”

On the other hand, Article 73 of the LOPDGDD indicates, for the purposes of the limitation period:

“Article 73. Serious infringements.

1. In accordance with what is established in Article 83.4 of Regulation (EU) 2016/679, the following are considered serious and shall be subject to a limitation period of two years: infringements that constitute a substantial violation of the articles mentioned therein, particularly the following:

(...)

t) The processing of personal data without having carried out the impact assessment of the processing operations on the protection of personal data where it is required.”

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Finally, Article 74 states, for the purposes of the statute of limitations:

“Article 74. Minor infringements.

The remaining infringements of a merely formal nature mentioned in paragraphs 4 and 5 of Article 83 of Regulation (EU) 2016/679 are considered minor and shall be subject to a one-year statute of limitations, particularly including the following:

a) Non-compliance with the principle of transparency of information or the right to information of the data subject by failing to provide all the information required by Articles 13 and 14 of Regulation (EU) 2016/679.

(...)

l) Maintaining a Record of processing activities that does not include all the information required by Article 30 of Regulation (EU) 2016/679.”

XV

Article 83 “General conditions for the imposition of administrative fines” of the GDPR in its paragraph 7 establishes:

“Without prejudice to the corrective powers of the supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State.”

Furthermore, Article 77 “Regime applicable to certain categories of controllers or processors” of the LOPDGDD provides as follows:

“1. The regime established in this article shall apply to the processing for which the following are responsible or act as processors:

(...)

c) The General Administration of the State, the administrations of the autonomous communities, and the entities that make up the Local Administration.

(...)

2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution sanctioning them with a warning. The resolution shall also establish the measures that should be taken to cease the conduct or correct the effects of the infringement that has been committed.

The resolution shall be notified to the controller or processor, to the body to which it hierarchically depends, if applicable, and to the affected parties who had the status of interested parties, if applicable.

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3. Without prejudice to what is established in the previous paragraph, the data protection authority shall also propose the initiation of disciplinary proceedings when there are sufficient indications for it. In this case, the procedure and the sanctions to be applied shall be those established in the legislation on the disciplinary or sanctioning regime that is applicable.

Furthermore, when the infringements are attributable to authorities and executives, and the existence of technical reports or recommendations for processing that have not been duly addressed is proven, the resolution imposing the sanction shall include a reprimand naming the responsible official and shall order publication in the Official State Gazette or the corresponding regional gazette.

4. The resolutions relating to the measures and actions referred to in the previous paragraphs shall be communicated to the data protection authority.

5. The actions carried out and the resolutions issued under this article shall be communicated to the Ombudsman or, where applicable, to the analogous institutions of the autonomous communities.”

In the present case, as evidenced by the proven facts, it is deemed appropriate to sanction the complained party with a warning for the infringement of Articles 6.1, 12.1, 13, 14, 30.1, and 35 of the

GDPR.

XVI

Article 58.2.f) of the GDPR provides that each supervisory authority may “impose a temporary or definitive limitation on processing, including its prohibition;”

The imposition of these measures is compatible with the sanction consisting of a warning, as provided in Article 83.7 of the GDPR.

It is agreed to impose on MCP the measure provided for in Article 58.2.f) GDPR, consisting of the cessation of all processing of personal data related to the aforementioned system for opening waste containers using an electronic card or mobile application linked to the address due to the infringement of Article 6.1 of the GDPR.

This AEPD wishes to clarify that the cessation of this personal data processing is due to the fact that the complained party does not comply with the provisions of the GDPR, and this does not affect other subsequent processing that, in relation to waste management, the complaining party may carry out as long as it fully complies with the obligations set forth in the GDPR.

It is warned that failure to comply with the order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

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IN CONCLUSION:

The respondent has been implementing, since autumn 2021, a system for opening waste containers equipped with electronic locks that correspond to Access Control Equipment (ECA) for such containers, activated by a card linked to a specific postal address, a transport card activated for the opening of containers, or a mobile application linked to a specific postal address.

Although the electronic cards for opening waste containers were initially distributed by mail, subsequently individuals have been able to:

1. Request a new card (in cases of loss, malfunction, breakage, change of address),
2. Request the activation of the transport card for the opening of waste containers,
3. Request credentials to activate the mobile application for opening waste containers.

In these cases, in addition to processing the personal data of the postal address, new personal data has been processed derived from the collection and registration of the submission of the aforementioned requests: ID number, first name and last name, email address, phone number, postal address, transport card ID, signature.

The processing carried out, and currently being carried out, by the respondent has infringed the following articles of the GDPR:

1. Article 6.1 of the GDPR since there is no legitimizing cause that supports the processing of personal data subject to the sanctioning file.

At the time of filing the complaint with the AEPD, the processing was not lawful because:

1. The processing of personal data carried out by the respondent was not lawful solely for the achievement of the objectives of waste separation at source established by the regulations, since:
  - a) The processing cannot be considered based on compliance with a legal obligation enforceable against the data controller because Law 22/2011, of July 28, on waste and contaminated soils, does not require it to carry out any processing of personal data to exercise its competencies in the collection, transport, and treatment of domestic waste.
  - b) The processing also cannot be considered based on a mission carried out in the public interest or in the exercise of public powers conferred to the data controller. The Regulatory Ordinance on waste management of MCP, the last level of regulatory specification that Law 22/2011, of July 28, on waste and contaminated soils, enabled to determine the means of how to carry out such waste management,

does not provide for the collection of personal data for the use made of the different containers by each household.

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In this regard, it should be noted that the developed system does not allow identifying whether a particular citizen manages their waste according to what the ordinance establishes, but only allows knowing whether they open or do not open a specific waste container.

2. The respondent was not carrying out data processing in relation to its inspection and sanctioning competencies in waste management. However, with this system, it seems difficult that it could have done so, since it is not possible to identify the specific individuals who throw a particular waste into a container.

3. The respondent had not implemented a fee related to waste separation at source, nor had the LRSCEC yet come into force, so there was no obligation to implement the fee regulated in its article 11.3. In this regard, it should be noted that with the waste separation system implemented by the respondent, it was only known whether individuals opened or did not open a specific container.

Currently, the processing carried out by the respondent is also not lawful, since:

1. The processing of personal data that the respondent currently carries out is not lawful solely for the achievement of the objectives of waste separation at source established by the regulations, since:

a) The processing cannot be considered based on compliance with a legal obligation enforceable against the data controller because the LRSCEC does not require it to carry out any processing of personal data to exercise its competencies in the collection, transport, and treatment of domestic waste.

b) The processing also cannot be considered based on a mission carried out in the public interest or in the exercise of public powers conferred to the data controller. The Regulatory Ordinance on waste management of MCP, the last level of regulatory specification that the LRSCEC enables to determine the means of how to carry out such waste management, only contemplates the collection of data on the use of containers, and does not provide for the collection of personal data for the use made of the different containers by each household.

2. The respondent continues not to carry out data processing in relation to its inspection and sanctioning competencies in waste management.

3. The fee regulated in article 11.3 of the LRSCEC has not yet been implemented, so currently it is also not carrying out data processing in relation to the management of a fee based on the waste generation payment system.

For purely clarifying purposes, it should be noted that:

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- The Ordinance regulating waste management of MCP only contemplates the collection of data from the containers in order to know their degree of utilization to achieve regulatory objectives, as well as for the promotion of the service and its results.

- The Ordinance regulating waste management of MCP does not foresee the processing of personal data.

- The data of the postal address, in addition to other personal data used, is a personal data in itself.

- The personal data of the postal address does not serve to achieve the objectives of waste separation at source.

2.- Articles 12, 13, and 14 of the GDPR.

Within the implementation of the electronic opening system of waste containers with electronic cards

and mobile application, there have been two phases:

- Implementation Phase: Through a mailing, two electronic cards linked to the postal address were attached, informing service users in each area how to use the system of containers with electronic opening.
- Exploitation Phase: In which users of the system can request new cards, the activation of the transport card for opening waste containers, or credentials for the mobile application for opening containers.

In the first case, we are talking about the information that must be provided when personal data has not been obtained from the data subject (Article 14 of the GDPR), while in the second case we must refer to the information that must be provided when personal data is obtained from the data subject (Article 13 of the GDPR).

In both cases, the information provided was incomplete.

### 3.- Article 30 of the GDPR.

In the record of processing activities at the time of the complaint submission:

- There was an inaccuracy regarding the data controller, as SCPSA was listed instead of MCP.
- There was no record of processing related to the activation of the transport card to open waste containers.
- And there was no record of processing related to the use of the mobile application for opening waste containers.

In the current record of processing activities, the inaccuracy regarding the data controller persists, as SCPSA is listed instead of MCP.

### 4.- Article 35 of the GDPR.

The responding party submitted, along with its allegations to the proposed resolution, the data protection impact assessment of the project "Waste Card and Other Devices" dated June 20, 2023, in which the necessity analysis determines the obligation to carry out a DPIA.

Since the circumstances of the aforementioned personal data processing have not changed since its inception, the responding party should have conducted such a DPIA before commencing the processing of personal data.

Finally, it is necessary to highlight that the responding party, throughout the entire procedure, has attempted to comply with some of its obligations regarding data protection by presenting documentation prepared ad hoc (in response to the infringements highlighted by the AEPD), in an attempt to justify the adequacy of personal data processing to the regulations. Similarly, it has repeatedly expressed a series of commitments to comply with the GDPR without demonstrating any actual compliance.

Moreover, in its attempt to justify the legitimacy of the processing, it has incurred numerous, continuous, and flagrant contradictions regarding the same, such as when it states that the processing of the postal address is not essential and yet processes it, or when it states that the postal address data cannot determine who throws the waste into a container and seeks to exercise inspection and sanctioning authority.

Regarding the above, we must emphasize that compliance with data protection regulations does not consist of commitments, but in the effective, timely, and proper fulfillment of the obligations imposed by the GDPR on data controllers. Let us not forget that a fundamental right of citizens is at stake, which Public Administrations are obliged to guarantee.

Many of these obligations, such as the preparation of the record of processing activities, the preparation of the information that must be provided to data subjects, or the conduct of the DPIA, should have been fulfilled by the responding party before effectively launching the processing of personal data. Doing so afterwards does not respond to the principle of proactive responsibility regulated in Article 5.2 of the GDPR nor to privacy by design regulated in Article 25.1 of the GDPR.

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Nevertheless, it should be noted that regardless of all the modifications made to the record of processing activities, the information that must be provided to the data subjects must comply with data protection regulations, and an EIPD must be carried out; otherwise, the processing of personal data is not lawful and cannot be carried out.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection

**RESOLVES:**

**FIRST:** TO IMPOSE on the MANCOMUNIDAD DE LA COMARCA DE PAMPLONA, with NIF P3112070B, a warning sanction for the infringement of the following articles:

- Article 6.1 of the GDPR, classified under Article 83.5.a) of the GDPR.
- Articles 12.1, 13, and 14 of the GDPR, classified under Article 83.5.b) of the GDPR.
- Article 30.1 of the GDPR, classified under Article 83.4.a) of the GDPR.
- Article 35 of the GDPR, classified under Article 83.4.a) of the GDPR.

**SECOND:** TO IMPOSE on the MANCOMUNIDAD DE LA COMARCA DE PAMPLONA, with NIF P3112070B, to, pursuant to Article 58.2.f) of the GDPR, within 10 days, provide evidence of having ceased all processing of personal data related to the system for opening waste containers equipped with electronic locks corresponding to Access Control Equipment (ECA) for such containers, activated by a card linked to a specific postal address, a transport card activated for opening containers, or a mobile application linked to a specific postal address.

**THIRD:** TO NOTIFY this resolution to the MANCOMUNIDAD DE LA COMARCA DE PAMPLONA.

**FOURTH:** TO COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation proving the effective filing of the administrative contentious appeal. If the Agency does not become aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, the provisional suspension would be considered terminated.

938-010623

Mar España Martí

Director of the Spanish Agency for Data Protection

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